

**The Status of Palestinian Children in West Bank:
A Case Study from Second Intifada to Present Days -
International Law Obligations vs. Reality**

Diploma Thesis

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I would like to sincerely thank everyone's who's neutered my interest in the subject, from close or from afar, and supported me into pursuing this field of studies.

Merci

شُكراً جَزِيلاً

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1 Introduction

Dancer and artist Stacia Tauscher once said: “We worry about what a child will become tomorrow, yet we forget that he is someone today.” While the thought’s background is not likely to be remotely as serious as the situation in the Occupied Palestinian territories when it comes to minors, one can only observe the correlation which can be made with the generalisation of the nature of the interaction between Palestinian minors and Israeli authorities.

Since the end of the Six Days War in 1967, the West Bank has been under Israeli military occupation, its citizens’ conduct being instructed by both the Palestinian Authority’s legal system as well as the Israeli military court. Two significant civil uprisings took place since, commonly known as the First and Second Intifada, which were marked by enhanced protests and altercations between Palestinians and Israelis, leading to a high number of casualties and arrests, particularly on the Palestinian side in terms of absolute numbers. With the end of the Second Intifada in February 2005 came the prospects of a more peaceful period and the resuming of daily activities.

Being a very active state on the diplomatic level, the state of Israel has ratified numerous international legal texts protecting from close or afar the rights of minors. By its adhesion to the United Nations, it is also bound to respect a certain amount of principles for the protection of juveniles. As an occupying power of the West Bank, it is also Israel’s duty to extend these rights to the civilians under its jurisdiction, in the eye of international law.

This work will therefore focus on the obligations of the state of Israel towards the rights of Palestinian minors in light of international law. A preliminary assessment will be made of the contracted directives made under several international legal texts by the state of Israel, followed by the reality of its application on the grounds in terms of Palestinian minors’ rights. It will then address amendments recently made in the legal corpus in the optic of improving the minors’ welfare.

Having both a keen interest in the application of international laws as well as a particular attachment with the region, the fate of children so frequently arrested while seemingly dispossessed of any rights when being under the jurisdiction of a highly developed country intrigued me. I also came to the realisation that more than one Palestinian minor was arrested by Israeli forces every single day, thus affecting entire generations. From there came the desire to shed light on this particular aspect of the conflict, collecting information on the situation while contrasting it with obligations from an international legal perspective.

2 Methodology and aim of the thesis

The aim of this work was to analyze the impact that international law has on Israel's treatment of Palestinian minors in the West Bank, seeking to highlight the obligations bound by international legal texts when it comes to the treatment of Palestinian juveniles. These findings were then coupled with observations made on the ground as a way of identifying which fields need improvement in order to match international standards. A small section was also dedicated to recent reforms undertaken by the military justice system, depicting different views on the matter.

The first main research goal aimed to be answered was the following: What obligations does Israel have towards Palestinian children in the context of international law? Numerous legal texts were reviewed in order to provide authentic extracts of the legislation related to the issue, including retranscription in situations of dialogues in case of applicability disagreements.

The follow research goal was: What is the reality on the ground faced by Palestinian children in the West Bank? The data relied on was primarily obtained through interviews conducted by Defense for Children International – Palestine; the reliability of the data was guaranteed by signed affidavits and correlated well with data provided by Israeli authorities. The same data was further used by several other non-governmental organisations, including Israeli associations, as well by international lawyers associations and by the UNICEF.

A case study was chosen as the format for this work, offering as such the opportunity to research on the topic in both qualitative and quantitative ways. The majority of the data and testimonies used were no older than ten years, with a few numbers exceeding this time span yet remaining extremely relevant. An effort was made to use the most recent ones as much as possible, yet the context on the ground made the publishing of reports by other parties seemingly longer and less frequent, consequently limiting the availability of more recent case studies. A few scholar articles were also used as an insight on certain implications which would not have been perceived through reports and legal texts.

This thesis will therefore start by placing the reader in a general context, both on a socio-political aspect as well as historical, before addressing international legal obligations by Israel. It will then contrast it with the reality faced by Palestinian minors, closing on an overview of recent reforms in the field.

3 Context

3.1 The Establishment of the Israeli Military Court

Several wars have marked the history leading to the established of modern Israel, one of the most important ones being the Six Days War, which occurred in June 1967. Historian Ilan Pape alludes to the idea of different phases in the conflict, highlighting the 1948 to 1956 period as one focused on peace efforts and thus contrasting it with an “arms race” climate in light of June 1967. A series of events led to a military alliance uniting Jordan, Syrian and Egypt against Israel. The attack was launched by Israel on June 5th 1967, effectively leading to the occupation of the West Bank, known as Judea and Samaria, and also controlling the Gaza Strip, the Golan Heights and the Sinai Peninsula. (Rabah and Fairweather 1995)

The Six Days War is particularly relevant as one of its fallout was the formulation of Military Proclamation No. 2 on June 7th 1967, giving complete legislative, executive and judicial power to the area commander in the West Bank. Following this military proclamation, the criminal code was established in occupied West Bank through the Security Provisions Order (SPO) (No. 378). The SPO was amended numerous times since its creation, responsible for “[establishing] military courts, [outlining] their area of jurisdiction and [laying] down procedural provisions; [regulating] the arrest of, search for and detention of suspects and accused persons; and [establishing] a list of crimes and punishment.” (Weill 2007)

For instance, Military Proclamation 2 reads as such: “This military order endows the Area Commander with all legislative, executive and judicial powers. It describes the area to which the order applies as the “West Bank” and declares that the laws which were in force up to 7 June 1967 shall remain in force as long as they are not contradicted by a subsequent military order. It assumes control over any property, vehicle, money or ammunition which previously belonged to the Jordanian government or any associated organisation. It stipulates that the laws of taxation, customs and fees in effect on 6 June 1967 are still in force and that monies due should be paid to the military authorities. Severe punishments are threatened for anyone who disregards these laws.” (Rabah and Fairweather 1995)

Different kind of legislative documents guide the Israeli military judicial system: military proclamations, military orders (numbered and unnumbered), regulations, and notifications/ instructions. Military proclamations are ratified by Israeli Chief of Staff, providing the Area Military Commander with extensive jurisdiction. There are only three of them however, and were essentially ratified during the first days of occupation. Military orders on the other hand are extremely numerous; ratified by the Area Military Commander, they “[regulate] life in the West Bank” and are usually numbered. Unnumbered military orders do exist and can be signed by a commander

or head of Civil Administration, amending existing order or laws. (Rabah and Fairweather 1995)

To this day, more than 1800 military orders are found in the Israeli military judicial system. Military Order 1651 would probably be considered as one of the most important one; first written in 1970, it has since then been amended multiple times. The last noted modification occurred in May 2010. Its particular relevance is due to the fact that it includes the “military criminal code” as well as the “rules of evidence, practice and procedure” in regards to military judicial institutions. It also includes a section on the military juvenile court. (“Military Orders” 2022)

Military Order 1651, as of 2010, defines key relevant words as the following:

Military juvenile court – “a military court of the first instance, with a single judge presiding who is a juvenile judge, or a panel in which the presiding judge is a juvenile judge.” (Israel Defense Forces 2009)

Minor – “a person under the age of 16; and in regard to a suspect and a defendant, this includes a person who is under the age of 16 on the day the indictment is filed against him.” (Israel Defense Forces 2009)

Figure 1 in the Appendix offers a geographical overview of the Israeli military juvenile detention structures.

3.2 The West Bank post-Oslo agreement

On September 28 1995 was ratified the Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip, also known as Oslo II. It came as a continuation of the Middle East peace talks previously initiated in Madrid in 1991, and was ratified in Washington DC under the witness of the United States of America, the Russian Federation, the Arab Republic of Egypt, the Hashemite Kingdom of Jordan, the Kingdom of Norway, and the European Union. (Oslo II, 1995) This agreement was created to officialise the transfer of authority, after the 1993 Declaration of Principles which established the Palestinian Authority (PA) as the successor of the Palestinian Liberation Organization (PLO). (Weill 2007)

As a direct consequence, the West Bank was divided into three areas; area A, area B, and area C. Area A represented the autonomous territories, and as such was under complete control of the PA except when it came to foreign affairs. Area B designated the occupied territories, in which the PA was in charge of the internal public order while the Israeli army had authority over security matters. Finally, area C were

zones under complete Israeli military control, dominantly composed of Israeli settlements as well as military bases. (Weill 2007)

In practice however, and legally supported, the Israeli military still retain authority over area A which is supposedly the Palestinian Authority's task. This was achieved by the State of Israel through military Proclamations; while the military Proclamation No. 7 endorsed matters set out by the Israeli-Palestinian Agreement on the West Bank and the Gaza Strip, it included several differential gaps with the previously mentioned agreement, a key one being that it didn't alter the notion of "Region". (Weill 2007) The impact of this lack of amendment has considerable consequences, as the notion of region therefore refers back to the one defined in the military Proclamation No.2, adopted in 1967, hence pre-Oslo agreement, namely the whole West Bank, including the area A. ("Proclamation No. 2 Proclamation Regarding Regulation Of Administration And Law" 2020)

Figure 2 in the appendix offers an areal overview of the implication of Oslo II agreements in terms of area A, B and C.

3.3 The West Bank's socio-political context post Second Intifada

On September 28 2000, Israeli opposition leader Ariel Sharon visited the Al-Aqsa mosque in Jerusalem, effectively sparking anger among the Palestinians and igniting a strong movement of civil unrest, movement which was backed by Yasser Arafat, then at the head of the Palestinian Authority (PA). The corruption of the PA combined with the general disappointment of the outcome of the Oslo agreements were also decisive factors behind the uprisings. The civil unrests lasted until February 2005, killing around 1000 Israelis and 3000 Palestinians. Israel also initiated the construction of the Separation Wall in the West Bank during this period of time. The Second Intifada ended with the ratification of a truce in February 2005 between Mahmoud Abbas, having replaced Arafat after his death, and Ariel Sharon, Israeli prime minister at the time. ("Second Intifada - Makan" 2022) While the truce led to an overall decrease in the hostilities in terms of systematic violence, it did not however lead to absolute peace, as the number of Palestinian martyrs remained relatively important the following years, with the years 2008, 2009 and 2014 being exceptionally violent. ("Killed Palestinians (Martyrs) In Al-Aqsa Uprising (Intifada), By Year 2000- 2018" 2022)

Figure 3 in the appendix compiles the number of Palestinian martyrs during and following the Second Intifada.

While the cessation of violence had been brokered by the truce signed in Egypt in 2005, the political struggle between the Fatah movement and the Hamas movement didn't end here. Mahmoud Abbas, representing Fatah, was elected in January 2005 as the successor of Yasser Arafat. On January 2006, Hamas won 74 seats out of the

132 parliamentary ones, making it a significant actor of the Palestinian government. (Barron 2019) Concurrently, the Middle East Quartet, composed of the United States, the European Union, Russia and the United Nations required the adherence of all members of the future Palestinian government to the Quartet Principles. These three principles were to be all unanimously accepted, the exclusion of one of them not being a possibility if the government were to be acknowledged by the international community. The three principles, namely "the renunciation of violence", "the recognition of Israel", and "the adherence to previous diplomatic agreements" (Goerzig 2010) backed Hamas into its exclusion.

During the year of 2006, several attempts were made on the initiative of Fatah leader Abbas in order to reach national unity among the Palestinian factions. In December 2007, Saudi Arabia initiated the Mecca Agreement in an attempt to unite Fatah and Hamas, initiative which however failed a few months later with Abbas dissolving the association over disagreements with Hamas in Gaza particularly. Hamas took over Gaza, effectively leading to retaliatory measures against the enclave. The following years were marked by a series of reconciliation attempts between Hamas and Fatah, some being more successful than others. (Barron 2019)

Fatah is the dominant political group among the 11 factions composing the Palestine Liberation Organization (PLO). Other factions included in the PLO would be for instance the Popular Front for the Liberation of Palestine (PFLP), the Palestine Democratic Union (FIDA), and Palestine Liberation Front (PLF). Hamas on the other hand is not part of the PLO movement, alongside the Palestine Islamic Jihad (PIJ). While Hamas engages politically, voicing a strong opposition to Fatah, the PIJ on the other hand abstains from political activities, initially development from the Muslim Brotherhood. Suicide bombings against Israeli targets have been revenged by both groups; they would have ceased however in 2005 regarding Hamas and 2007 for the PIJ. These factions are however still active in the West Bank territory. ("Mapping Palestinian Politics" 2022)

From an economic perspective, it can generally be said that the West Bank's situation has been developing rather positively since the end of the Second Intifada. Based on data from the World Bank, GDP per capita grew constantly until 2019, concurring with the start of the COVID 19 epidemic. GDP growth also been growing since 2006, although some setbacks are noticeable in 2014 for instance, which can be explained by the fact that the World Bank's data includes Gaza, which was then under Israeli military deployment. On the other hand, unemployment has been increasing since 2011, reaching 26.3% in 2008. ("West Bank And Gaza | Data" 2022) The fact that these numbers include not only the West Bank but Gaza as well must be taken into consideration, as in 2018 Gaza alone had an unemployment rate of 58% for instance. ("State Of Palestine (West Bank And Gaza) Unemployment Rate: Gaza Strip" 2018)

3.4 One territory, two different Israeli legal systems

Since 1967, the West Bank has been under the influence of Israeli military occupation, implying not only the presence of Israeli authorities on the ground, but also the ruling of the West Bank population by Israeli military law, in addition to Palestinian law. The Israeli military law however is only applied to Palestinians committing the offence in the West Bank, while an Israeli similarly would be tried with the Israeli civil law back in Israel, despite being the same crime in the same location. The Israeli Ministry of Justice confirmed the pattern to the delegation of lawyers from the Foreign and Commonwealth Office back in 2011, stating that “a Palestinian will be tried before a military court if he did something in the West Bank. [...] An Israeli, even if he lives there and did it there, [...] will be tried in Israel.” (Sedley et al. 2012)

Minors are not exempted from this system; Israeli citizens, including settlers living in the West Bank, will be judged by Israeli civilian juvenile law, while West Bank Palestinians will be judged according to the Israeli military court system. In the specific case of minors, notable differences exist between the two systems. The previously mentioned delegation of British lawyers confirmed these differences highlighted by Defence for Children International – Palestine (DCI-P) in 2012 (Defense for Children International - Palestine 2012), after having them reviewed by an Israeli lawyer. (Sedley et al. 2012) As a direct consequence of that, an estimated of 500 to 700 Palestinian minors come into contact each year with the military judicial system, while zero Israeli minor does. (Defense for Children International - Palestine 2012)

Rights of Palestinian and Israeli children: Comparative table (Defense for Children International - Palestine 2012)

#	Event	Civilian juvenile justice system	Military court system
1	Minimum age of criminal responsibility	12	12
2	Minimum age for a custodial sentence	14	12
3	Age of majority	18	16-18 ¹
4	Legal right to have a parent present during interrogation	Generally yes ²	No
5	Legal right to have a lawyer present during interrogation	No	No ³

6	Legal right to have interrogation audio-visually recorded	Partial ⁴	No
7	Maximum period of detention before being brought before a judge	12-24h ⁵	8 days ⁶
8	Maximum period of detention without access to a lawyer	48h	90 days
9	Maximum period of detention without charge	40 days	188 days
10	Maximum period of detention between being charged and conclusions of trial	6 months	2 years ⁷

It is also relevant to take into account the following notes regarding the previously charted data:

1. The age of majority was increased to 18 years old in 2011 by Military Order 1676, (Defense for Children International - Palestine 2012) but adult sentencing is still implemented for minors aged 17-18. (Sedley et al. 2012)
2. According to Youth Law (1971), it permits the presence of a parent in the case where the concerned minor hasn't been officially arrested yet. An exception can be made to this rule upon official authorisation from an officer or in the case where a minor's wellbeing depends on the parent's absence.
3. The minor has the right of legal consultation, but it can be suspended for a maximum of 90 days in the case of security offences, according to Military Order 1651 and Military Order 1676.
4. The exception is in the case of security offenses with a maximum penalty of 10 years or more, according to the Criminal Procedure Law (2002).
5. It remains 12h in the case of minors aged 12-13 years old, and 24h in the case of minors aged 14 and more, as stipulated by the Youth Law (2008).
6. It was reduced to 4 days through Military Order 1685 in August 2012.
7. This period of time can be extended by the Military Court of Appeals, according to Military Order 1651. (Defense for Children International - Palestine 2012)

The delegation of lawyers from the Foreign and Commonwealth Office also highlighted another case in which the law applies differently based on the suspect's nationality. For the same crime of stone throwing, two different laws in each system relate; the 1977 Penal Law Art. 332 in the case of Israeli civilian law, hence applying to an Israeli minor, opposed to the Military Order 1651 Art. 212 in the case of Israeli military justice, applied to a Palestinian minor. (Sedley et al. 2012)

This nationality-based discrimination correlates with the definition of the term *racial discrimination* according to the International Convention on the Elimination of All forms of Racial Discrimination. Article 1.1 defines it as “any distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin which has the purpose or effect of nullifying or impairing the recognition, enjoyment or exercise, on an equal footing, of human rights and fundamental freedoms in the political, economic, social, cultural or any other field of public life.” (United Nations, Treaty Series, vol. 660, p. 195)

The need to ensure the absence of discrimination is furthermore highlighted in the International Covenant on Economic, Social and Cultural rights, as article 2.2 insures that “the States Parties to the present Covenant undertake to guarantee that the rights enunciated in the present Covenant will be exercised without discrimination of any kind as to race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.” (United Nations, Treaty Series, vol. 993, p. 3)

4 Israel's obligations in light of International Law

The state of Israel has ratified numerous international treaties and conventions by which it is bound to uphold certain standards in a variety of fields. The most important treaties pertaining to the situation with Palestinian minors are the following:

- The Fourth Geneva Convention
- The Rome Statute
- The Beijing Rules
- The International Covenant on Civil and Political Rights
- The UN Rules for the Protection of Juveniles Deprived of their Liberty
- The International Covenant on Economic, Social and Cultural Rights
- The International Convention on the Elimination of all forms of Racial Discrimination
- The UN Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
- The UN Convention on the Rights of the Child

An overview of the texts including specific legislation relating to interactions with Palestinian minors is offered below. A more detailed application will be correlated with the following chapter on the reality in the West Bank.

4.1 The Fourth Geneva Convention

Following the atrocities committed during WWII against civilian populations in particular, State representatives met in Geneva in 1949, leading to the creation of The Geneva Convention Relative to the Protection of Civilian Persons in Time of War. This convention is also called the Fourth Geneva Convention, and "is widely regarded as a codification of customary international law." (Imseis 2003). Along with the 1907 Hague Regulations, the Fourth Geneva Convention addresses hostile occupation, more specifically the "occupation of enemy territory in time of war," as well as "after a cease-fire or truce, when civilians could be subjected to military occupation in the absence of final political settlement." (Imseis 2003) The Fourth Geneva Convention was ratified by the State of Israel in 1951. ("Treaties, States Parties, And Commentaries - Israel" 2022)

Among its components, articles 4, 49 and 76 are the most relevant to the case of Palestinian minors, as it reiterates their status of as protected civilians and the illegality in their extraterritorial imprisonment:

Art 4

"Persons protected by the Convention are those who at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of persons a Party to the conflict or Occupying Power of which they are not nationals." (75 UNTS 287)

Art 49

"The Occupying Power shall not deport or transfer parts of its own civilian population into the territory it occupies." (75 UNTS 287)

Art 76

"Protected persons accused of offences shall be detained in the occupied country, and if convicted they shall serve their sentences therein. [...] They shall receive the medical attention required by their state of health."
(75 UNTS 287)

The convention's foundation relies on the concept of temporary occupation by the belligerent state, Israel's occupation of the West Bank being to this day the longest military occupation in modern history (Imseis 2003). In a work published in 2001, attorney Allegra Pacheco shared an overview of the situation: "Since 1967, the Israeli military has consistently violated nearly every provision of the Fourth Geneva Convention. Human rights organizations worldwide, from Amnesty International to Israel's own B'Tselem, as well as the United States government, have issued hundreds of statements and reports criticizing Israel's violations. Among the lists are: torture of over 50,000 Palestinians; over 1,500 Palestinians deported; annexation of East Jerusalem; construction of over 150 Jewish settlements [i.e., colonies]; illegal transfer of over 400,000 Israeli civilians into the occupied territories; repeated collective punishment... demolition of over 8,000 homes and villages in East Jerusalem and the West Bank and Gaza; pillage of Palestinian natural resources, including water, quarries, and trees; and the illegal appropriation of over 70 percent of the occupied territories" (Pacheco 2001)

However, the state of Israel has continuously refuted the *de jure* applicability of the Fourth Geneva Convention to the Occupied Palestinian territories, simultaneously denying the responsibility of its military activities in the OPt as a source of international law violations. (Imseis 2003) It argued that the convention was not applicable due to the "the lack of recognition of the territory as sovereign prior to its annexation by Jordan and Egypt", adding that the Convention's criteria in which the concerned territory had to be under the sovereignty of a High Contracting Party was not fulfilled. (International Court of Justice 2004)

As a response to Israel's position, several assemblies have been conducted, both within the United Nations corpus and the International Court of Justice, to address in particular the issue over the applicability of the Fourth Geneva Convention to the OPT.

In 1999, the High Contracting Parties of the Fourth Geneva Convention met for a conference following the UN's emergency session's recommendations. The report of the conference was published from Geneva in 2001, concluding on the applicability of the convention: "Taking into account art. 1 of the Fourth Geneva Convention of 1949 and bearing in mind the United Nations' General Assembly Resolution ES-10/7, the participating High Contracting Parties reaffirm the applicability of the Convention to the Occupied Palestinian Territory, including East Jerusalem and reiterate the need for full respect for the provisions of the said Convention in that Territory. Through the present Declaration, they recall in particular the respective obligations under the Convention of all High Contracting Parties (para 4-7), of the parties to the conflict (para 8-11) and of the State of Israel as the Occupying Power (para 12-15)." ("Implementation Of The Fourth Geneva Convention In The Occupied Palestinian Territories: History Of A Multilateral Process (1997-2001)" 2002)

In 2004, the International Court of Justice published an advisory opinion, known as *Legal Consequences of the Construction of a Wall in the Occupied Palestinian territories*. It reiterated the two conditions required to validate the applicability of the Fourth Geneva Convention. The first condition is the presence of an armed conflict, regardless if a state of war is admitted. The second condition is the existence of "two contracting parties" opposed in the conflict. The Court further reiterated that these two conditions reflected the spirit of the drafters of the convention which were focused on the protection of civilian populations "regardless of the status of the occupied territories", urging the treaty to be interpreted in good faith. The International Court of Justice finally concluded that "the Court considers that the Fourth Geneva Convention is applicable in any occupied territory in the event of an armed conflict arising between two or more High Contracting Parties. Israel and Jordan were parties to that Convention when the 1967 armed conflict broke out. The Court accordingly finds that that Convention is applicable in the Palestinian territories which before the conflict lay to the east of the Green Line and which, during that conflict, were occupied by Israel, there being no need for any enquiry into the precise prior status of those territories." (International Court of Justice 2004)

In 2015, the United Nations General Assembly adopted Resolution 70/88 on the applicability of the Fourth Geneva Convention, stressing on the necessity for the State of Israel to comply with international law, including particularly international humanitarian law under which falls the Fourth Geneva Convention. In the resolution, the General Assembly further "reaffirms that the Geneva Convention relative to the Protection of Civilian Persons in Time of War, of 12 August 1949, is applicable to the

Occupied Palestinian Territory, including East Jerusalem, and other Arab territories occupied by Israel since 1967". It also further reiterates the need to "exert all efforts to ensure respect for its provisions". (A/RES/70/88)

4.2 The Rome Statue

The Rome Statue, also known as the Statute for the International Criminal Court, was ratified in 1998 at the Diplomatic Conference held in Rome and effectively led to the creation of the International Criminal Court (ICC). Being the fruit of lengthy negotiations among states, the court established in The Hague is tasked to prosecute international crimes which couldn't and/ or wouldn't be prosecuted by national courts. ("Treaties, States Parties, And Commentaries - Statute Of The International Criminal Court, 1998" 2022) In addition to its complementary aspect, the Rome Statue is closely tied to the United Nations' sets of values, as reminded in the preamble of the text. The jurisdiction of the court is furthermore contained within these four categories: "crimes of genocide", "crimes against humanity", "war crimes", and "crimes of aggressions". (ISBN No. 92-9227-227-6)

The State of Israel ratified the Rome Statute on December 31st 2000, two years after the creation of it. The initial refusal to ratify it contrasted with Israel's strong support for the initial creation of the ICC, explained by the fact that Israeli settlements located in the West Bank, Gaza and Golan Heights would qualify as a war crime under the statute. Israel additionally rejected the political climate that had insinuated itself at the Rome Conference, particularly opposing "the inclusion in the draft treaty, at the insistence of Arab countries, of a clause implying that Jewish settlement activity in 'occupied Palestinian territory, including Jerusalem' was a war crime comparable to the Nazi Holocaust and other atrocities." (Blumenthal 2002)

Following negotiations in regards to what would be included as crimes under the jurisdiction of the ICC, the State of Israel finally ratified it (Blumenthal 2002). It however added a reservation in the clause, warning against politization of the Statute: "At the 1998 Rome Conference, Israel expressed its deep disappointment and regret at the insertion into the Statute of formulations tailored to meet the political agenda of certain states. Israel warned that such an unfortunate practice might reflect on the intent to abuse the Statute as a political tool. Today, in the same spirit, the Government of the State of Israel signs the Statute while rejecting any attempt to interpret provisions thereof in a politically motivated manner against Israel and its citizens. The Government of Israel hopes that Israel's expressions of concern of any such attempt would be recorded in history as a warning against the risk of politicization, that might undermine the objectives of what is intended to become a central impartial body, benefiting mankind as a whole." ("Chapter XVIII: Penal Matters: Rome Statute Of The International Criminal Court" 2022)

Article 8² of the Rome Statute is particularly relevant to the treatment of Palestinian minors in the West Bank, as it reiterates the illegality of extraterritorial imprisonment as well as the lack of a fair trial.

Art 8²

1. "The Court shall have jurisdiction in respect of war crimes in particular when committed as part of a plan or policy or as part of a large-scale commission of such crimes.
2. For the purpose of this Statute, "war crimes" means:

(a) Grave breaches of the Geneva Conventions of 12 August 1949, namely, any of the following acts against persons or property protected under the provisions of the relevant Geneva Convention: [...] (vi) Willfully depriving a prisoner of war or other protected person of the rights of fair and regular trial;

(b) Other serious violations of the laws and customs applicable in international armed conflict, within the established framework of international law, namely, any of the following acts: The transfer, directly or indirectly, by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory;" (ISBN No. 92-9227-227-6)

4.3 The Beijing Rules

The Beijing Rules were adopted in November 1985 by the United Nations General Assembly, and are also known as the United Nations Standard Minimum Rules for the Administration of Juvenile Justice. It focuses on the well-being of juveniles and their families, embracing values of societal development, social justice and self-development. It also reiterates the necessity to avoid any form of discrimination among juveniles, applying the principles "impartially, without distinction of any kind, for example as to race, colour, sex, language, religion, political or other opinions, national or social origin, property, birth or other status." The aim of juvenile legal systems under this set of rules is furthermore described as a tool seeking to "emphasize the well-being of the juvenile and shall ensure that any reaction to juvenile offenders shall always be in proportion to the circumstances of both the offenders and the offence." (A/RES/40/33)

Articles 7, 10, and 13 are particularly relevant in the case of the arrest of Palestinian minors, especially in regards to the arrest and pretrial detention conditions they face: (A/RES/40/33)

Art 7.1

"Basic procedural safeguards such as the presumption of innocence, the right to be notified of the charges, the right to remain silent, the right to counsel, the right to the presence of a parent or guardian, the right to confront and cross-examine witnesses and the right to appeal to a higher authority shall be guaranteed at all stages of proceedings." (A/RES/40/33)

Art 10.1

"Upon the apprehension of a juvenile, her or his parents or guardian shall be immediately notified of such apprehension, and, where such immediate notification is not possible, the parents or guardian shall be notified within the shortest possible time thereafter." (A/RES/40/33)

Art 13.1

"Detention pending trial shall be used only as a measure of last resort and for the shortest possible period of time." (A/RES/40/33)

4.4 The International Covenant on Civil and Political Rights

The International Covenant on Civil and Political Rights (ICCPR) was first written in 1966 as a text part of the United Nations human rights treaties. It was then ratified by the State of Israel in October 1991. ("UN Treaty Body Database" 2022) The ICCPR finds its foundations in the Universal Declaration of Human Rights, insisting on the right to freedom through "civil and political freedom" as a way to guarantee human dignity. It is tightly linked as well to "economic, social and cultural rights", which is protected under the International Covenant on Economic, Social and Cultural Rights. (United Nations, Treaty Series, vol. 999, p. 171)

In June 2020, a legal briefing was published by the International Commission of Jurists concerning Israel's compliance with the ratified ICCPR. It highlighted four areas in which Israel appeared to be in breach with articles from the covenant, including the continuous expansion of settlements coupled with progressive annexation of the West Bank, as well as the apparent lack of accountability within the military legal system. These last two points are particularly relevant in the cases of Palestinian minors. The report clearly stated that "By failing to dismantle the settlements and related infrastructure, including the portions of the "Separation Wall" located in the West Bank, and withdrawing all settlers, Israel continues to violate articles 1, 2, 9, 12, 17, 18 and 26 of the ICCPR". The lack of accountability is also voiced as being a main infringement to the covenant. While the attacks led against Gaza are the ones

quoted in the report as an example, a similar situation is also found in the West Bank, with Palestinian minors as the victims of it. The jurists criticized in particular “(i) the lack of legislation concerning superior responsibility; (ii) the office of the Military Advocate General; (iii) the threshold to open an investigation; (iv) operational debriefings; and (v) the fact-finding assessment mechanism.” (International Commission of Jurists 2020)

Article 7, 9, 10 and 14 of the ICCPR are particularly relevant in regards to the arrest and trial of Palestinian minors in the West Bank (United Nations, Treaty Series, vol. 999, p. 171):

Art 7

“No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.” (United Nations, Treaty Series, vol. 999, p. 171)

Art 9

1. “Everyone has the right to liberty and security of person. No one shall be subjected to arbitrary arrest or detention. No one shall be deprived of his liberty except on such grounds and in accordance with such procedure as are established by law.
2. Anyone who is arrested shall be informed, at the time of arrest, of the reasons for his arrest and shall be promptly informed of any charges against him.” (United Nations, Treaty Series, vol. 999, p. 171)

Art 10

1. “All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person.” (United Nations, Treaty Series, vol. 999, p. 171)

Art 14

1. “All persons shall be equal before the courts and tribunals. In the determination of any criminal charge against him, or of his rights and obligations in a suit at law, everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law.” (United Nations, Treaty Series, vol. 999, p. 171)

3. “In the determination of any criminal charge against him, everyone shall be entitled to the following minimum guarantees, in full equality:

(a) To be informed promptly and in detail in a language which he understands of the

nature and cause of the charge against him;

(b) To have adequate time and facilities for the preparation of his defense and to communicate with counsel of his own choosing.

(c) To be tried without undue delay;

(d) To be tried in his presence, and to defend himself in person or through legal assistance of his own choosing; to be informed, if he does not have legal assistance, of this right; and to have legal assistance assigned to him, in any case where the interests of justice so require, and without payment by him in any such case if he does not have sufficient means to pay for it; [...]

(g) Not to be compelled to testify against himself or to confess guilt.”
(United Nations, Treaty Series, vol. 999, p. 171)

4.5 The United Nations Rules for the Protection of Juveniles Deprived on their Liberty

The UN Rules of the Protection of Juveniles Deprived of their Liberty came into affect after the passing of resolution 45/113 by the UN General Assembly in December 1990. Its founding principles relies on the ones protected by the Beijing Rules, insisting on the respect of the minors' rights, safety, psychological and physical health. It also reiterates that “Imprisonment should be used as a last resort”, and defines a juvenile as a person under 18 years old of age. It safeguards minimal standards in the following fields: arrest or pending trial, juvenile facilities, registration and transfer, placement, environment, education, recreation, medical assistance, religion, use of force, community contact, disciplinary procedures, rehabilitation, and personnel. (A/RES/45/113)

Paragraphs 17, 19, 22, 29, 38, 42, 49, 50, 59, and 61 are particularly relevant in the case of Palestinian minors in the context of detention, safeguarding rights of adequate treatment and access to educational and medical services: (A/RES/45/113)

Par 17

“Detention before trial shall be avoided to the extent possible and limited to exceptional circumstances.” (A/RES/45/113)

Par 19

“All reports, including legal records, medical records and records of disciplinary proceedings, and all other documents relating to the form, content and details of treatment, should be placed in a confidential individual file, which should be kept up to date, accessible only to authorized persons and classified in such a way as to be easily understood. Where possible, every juvenile should have the right to contest any fact or opinion contained in his or her file so as to permit rectification of inaccurate, unfounded or unfair statements. In order to exercise this right, there should be procedures that allow an appropriate third party to have access to and to consult the file on request.” (A/RES/45/113)

Par 22

“The information on admission, place, transfer and release should be provided without delay to the parents and guardians or closest relative of the juvenile concerned.” (A/RES/45/113)

Par 29

“In all detention facilities juveniles should be separated from adults, unless they are members of the same family. Under controlled conditions, juveniles may be brought together with carefully selected adults as part of a special programme that has been shown to be beneficial for the juveniles concerned.” (A/RES/45/113)

Par 38

“Every juvenile of compulsory school age has the right to education suited to his or her needs and abilities and designed to prepare him or her for return to society.” (A/RES/45/113)

Par 42

“Every juvenile should have the right to receive vocational training in occupations likely to prepare him or her for future employment.” (A/RES/45/113)

Par 49

“Every juvenile shall receive adequate medical care, both preventive and remedial, including dental, ophthalmological and mental health care, as well as pharmaceutical products and special diets as medically indicated.” (A/RES/45/113)

Par 50

“Every juvenile has a right to be examined by a physician immediately upon admission to a detention facility, for the purpose of recording any evidence of prior ill-

treatment and identifying any physical or mental condition requiring medical attention." (A/RES/45/113)

Par 59

"Every means should be provided to ensure that juveniles have adequate communication with the outside world, which is an integral part of the right to fair and humane treatment and is essential to the preparation of juveniles for their return to society. Juveniles should be allowed to communicate with their families, friends and other persons or representatives of reputable outside organizations, to leave detention facilities for a visit to their home and family and to receive special permission to leave the detention facility for educational, vocational or other important reasons." (A/RES/45/113)

Par 61

"Every juvenile should have the right to communicate in writing or by telephone at least twice a week with the person of his or her choice, unless legally restricted, and should be assisted as necessary in order effectively to enjoy this right. Every juvenile should have the right to receive correspondence." (A/RES/45/113)

4.6 The International Covenant on Economic, Social and Cultural Rights

Combined with the previously mentioned International Covenant on Civil and Political Rights, the International Covenant on Economic, Social and Cultural Rights is a very important treaty founded on the principles of the Universal Declaration of Human Rights. It was first open to signatures by the UN General Assembly in 1966, taking effect a decade later in January 1976. It focuses on social, economic and cultural rights, as opposed to the other covenant focused on political and civil rights. (United Nations, Treaty Series, vol. 993, p. 3) The State of Israel ratified it on October 3rd 1991. ("UN Treaty Body Database" 2022)

A parallel report was published in 2011 by Affiliate International Commission of Jurists Geneva, a consultative NGO for the ICESCR, under the form of a third periodic report on Israel's application of the ICESCR. The report was endorsed by DCI-P among others. It raised issues with articles 13 and 14 of the covenant which is focused on education. A first point made was concerning the impact of the military checkpoints and wall construction on accessing education. The village of Dhahr al-Maleh in Jenin (West Bank) area was given as an example, provided that the wall gate is opened only from 7 to 10am and from 12 to 7pm, trapping the Palestinians

in the village once past these hours. Provided that the school is located in a neighboring village, students not only risk missing out on a school day in case they can't pass the gate in time, but are also subject to daily searches by the IDF. The second point raised was the lack of security in teaching sites due to the presence of settlers and Israeli military, as the schools are often targets of the violence. In the year of 2011 alone, the report cited three incidents in which school vicinities, including personnel and students, suffered from military raids or physical violence perpetrated by the settlers. The final points raised were the actual demolition, and lack of permit renewals, of schools in the West Bank upon Israeli orders, which are not isolated cases. (Al-Haq 2011)

Articles 2, 13 and 14 is particularly relevant in the case of Palestinian minors in the West Bank in terms of prevention of discrimination as well as access to education during imprisonment. (United Nations, Treaty Series, vol. 993, p. 3)

Art 2

1. "The States Parties to the present Covenant undertake to guarantee that the rights enunciated in the present Covenant will be exercised without discrimination of any kind as to race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status." (United Nations, Treaty Series, vol. 993, p. 3)

Art 13

"1. The States Parties to the present Covenant recognize the right of everyone to education. They agree that education shall be directed to the full development of the human personality and the sense of its dignity, and shall strengthen the respect for human rights and fundamental freedoms. They further agree that education shall enable all persons to participate effectively in a free society, promote understanding, tolerance and friendship among all nations and all racial, ethnic or religious groups, and further the activities of the United Nations for the maintenance of peace." (United Nations, Treaty Series, vol. 993, p. 3)

Art 14

"Each State Party to the present Covenant which, at the time of becoming a Party, has not been able to secure in its metropolitan territory or other territories under its jurisdiction compulsory primary education, free of charge, undertakes, within two years, to work out and adopt a detailed plan of action for the progressive implementation, within a reasonable number of years, to be fixed in the plan, of the principle of compulsory education free of charge for all." (United Nations, Treaty Series, vol. 993, p. 3)

4.7 The International Convention on the Elimination of all forms of Racial Discrimination

The International Convention on the Elimination of all forms of Racial Discrimination (CERD) was adopted by the UN General Assembly and open to signatures in December 1965, coming in effect in 1969. It once again relies on the values of dignity and equality from the Charter of the United Nations and the Universal Declaration of Human Rights. (United Nations, Treaty Series, vol. 660, p. 195) It was ratified by the State of Israel on January 3rd 1979. ("UN Treaty Body Database" 2022)

In 2018, an initial inter-state communication to the committee of the CERD was initiated by the state of Palestine and directed to the state of Israel, concerning "discrimination on the ground of national or ethnic origin". The state of Palestine cited articles 2, 3, 5, 11 and 12 in particular, adding that "the Occupying Power, continues to deny the applicability of the Convention in the occupied territory of the State of Palestine" based on several criteria, such as the failure of the state of Palestine to provide the burden of proof. The Committee however "rejects the objections raised by the respondent State [in this case Israel] concerning the admissibility of the inter-State communication", therefore requesting the appointment of a Chair to conduct "an ad hoc Conciliation Commission". This decision was released only recently, on April 21 2021. (CERD/C/103/R.6)

Articles 1, 2, 3 and 5 are particularly relevant in the case of the Palestinian minors as a condemnation of any form of racial discrimination: (United Nations, Treaty Series, vol. 660, p. 195)

Art 1

1. "In this Convention, the term "racial discrimination" shall mean any distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin which has the purpose or effect of nullifying or impairing the recognition, enjoyment or exercise, on an equal footing, of human rights and fundamental freedoms in the political, economic, social, cultural or any other field of public life." (United Nations, Treaty Series, vol. 660, p. 195)

Art 2

1. "States Parties condemn racial discrimination and undertake to pursue by all appropriate means and without delay a policy of eliminating racial discrimination in all its forms and promoting understanding among all races, and, to this end:

(a) Each State Party undertakes to engage in no act or practice of racial discrimination against persons, groups of persons or institutions and to ensure that all

public authorities and public institutions, national and local, shall act in conformity with this obligation;

(b) Each State Party undertakes not to sponsor, defend or support racial discrimination by any persons or organizations;

(c) Each State Party shall take effective measures to review governmental, national and local policies, and to amend, rescind or nullify any laws and regulations which have the effect of creating or perpetuating racial discrimination wherever it exists;

(d) Each State Party shall prohibit and bring to an end, by all appropriate means, including legislation as required by circumstances, racial discrimination by any persons, group or organization;" (United Nations, Treaty Series, vol. 660, p. 195)

Art 3

"States Parties particularly condemn racial segregation and apartheid and undertake to prevent, prohibit and eradicate all practices of this nature in territories under their jurisdiction." (United Nations, Treaty Series, vol. 660, p. 195)

Art 5

"In compliance with the fundamental obligations laid down in article 2 of this Convention, States Parties undertake to prohibit and to eliminate racial discrimination in all its forms and to guarantee the right of everyone, without distinction as to race, colour, or national or ethnic origin, to equality before the law, notably in the enjoyment of the following rights:

(a) The right to equal treatment before the tribunals and all other organs administering justice;

(b) The right to security of person and protection by the State against violence or bodily harm, whether inflicted by government officials or by any individual group or institution;" (United Nations, Treaty Series, vol. 660, p. 195)

4.8 The United Nations Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment

The United Nations Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment (CAT) was adopted by the UN General Assembly and open for ratification on December 1984, entering in application in 1987. The Convention's values are based on the Universal Declaration of Human Rights, and also correlate closely with Article 7 of the ICCPR, reaffirming that "no one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment". (United Nations, Treaty Series, vol. 1465, p. 85) The State of Israel then ratified it on October 3rd 1991. ("UN Treaty Body Database" 2022)

In the Fifth Periodic Report of Israel conducted by the Committee against Torture, published in 2016, several improvements were formally welcomed. The Committee however “regrets” Israel’s position asserting that the Convention does not apply in all of the Occupied Palestinian territories, despite the same Committee previous comment dating from 2007 in parallel with other treaty committees as well as the International Court of Justice. The Committee concludes the periodic report by “[re-affirming] that the Convention applies to all territory and persons under the jurisdiction of the State party, including the Occupied Territories, in accordance with the Committee’s general comment No. 2 (2007), the views of other treaty bodies and the jurisprudence of the International Court of Justice.” (CAT/C/ISR/CO/5)

Articles 1, 12, 13, and 16 are particularly relevant in the case of Palestinian minors by defining the concept of torture and safeguarding individuals against it: (United Nations, Treaty Series, vol. 1465, p. 85)

Art 1

1. “For the purposes of this Convention, the term “torture” means any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession [...]” (United Nations, Treaty Series, vol. 1465, p. 85)

Art 12

“Each State Party shall ensure that its competent authorities proceed to a prompt and impartial investigation, wherever there is reasonable ground to believe that an act of torture has been committed in any territory under its jurisdiction.” (United Nations, Treaty Series, vol. 1465, p. 85)

Art 13

“Each State Party shall ensure that any individual who alleges he has been subjected to torture in any territory under its jurisdiction has the right to complain to, and to have his case promptly and impartially examined by, its competent authorities. Steps shall be taken to ensure that the complainant and witnesses are protected against all ill-treatment or intimidation as a consequence of his complaint or any evidence given.” (United Nations, Treaty Series, vol. 1465, p. 85)

Art 16

1. “Each State Party shall undertake to prevent in any territory under its jurisdiction other acts of cruel, inhuman or degrading treatment or punishment which do not amount to torture as defined in article I, when such acts are committed by or at the

instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity. In particular, the obligations contained in articles 10, 11, 12 and 13 shall apply with the substitution for references to torture of references to other forms of cruel, inhuman or degrading treatment or punishment.” (United Nations, Treaty Series, vol. 1465, p. 85)

4.9 The United Nations Convention on the Rights of the Child

The United Nations Convention on the Rights of the Child (UNCRC) was first adopted by the General Assembly resolution 44/25 in November 1989, and was successfully enforced from September 1990. (United Nations, Treaty Series, vol. 1577, p. 3) The State of Israel ratified the UNCRC the following year, in 1991, (Sedley et al. 2012) consequently adhering to values stated by the UNCRC preamble. Important passages would include the ones stating “that childhood is entitled to special care and assistance” and that “the child should be [...] brought up in the spirit of the ideals proclaimed in the Charter of the United Nations, and in particular in the spirit of peace, dignity, tolerance, freedom, equality and solidarity”, and as such “without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.” (United Nations, Treaty Series, vol. 1577, p. 3)

The most relevant components of the UNCRC in the case of Palestinian minors are the following, covering a wide range of rights: (United Nations, Treaty Series, vol. 1577, p. 3)

Art 2

1. “States Parties shall respect and ensure the rights set forth in the present Convention to each child within their jurisdiction without discrimination of any kind, [...]”
2. States Parties shall take all appropriate measures to ensure that the child is protected against all forms of discrimination [...]” (United Nations, Treaty Series, vol. 1577)

Art 3

1. “In all actions concerning children, [...] the best interests of the child shall be a primary consideration
2. States Parties undertake to ensure the child such protection and care as is necessary for his or her well-being, [...] and, to this end, shall take all appropriate legislative and administrative measures.

3. States Parties shall ensure that the institutions, services and facilities responsible for the care or protection of children shall conform with the standards established by competent authorities [...]” (United Nations, Treaty Series, vol. 1577)

Art 6

1. “States Parties recognize that every child has the inherent right to life.
2. States Parties shall ensure to the maximum extent possible the survival and development of the child.” (United Nations, Treaty Series, vol. 1577)

Art 12

1. “For this purpose, the child shall in particular be provided the opportunity to be heard in any judicial and administrative proceedings affecting the child, either directly, or through a representative [...]” (United Nations, Treaty Series, vol. 1577)

Art 28

1. “States Parties recognize the right of the child to education, and with a view to achieving this right progressively and on the basis of equal opportunity [...]” (United Nations, Treaty Series, vol. 1577)

Art 37

(a) “No child shall be subjected to torture or other cruel, inhuman or degrading treatment or punishment. [...]”

(b) No child shall be deprived of his or her liberty unlawfully or arbitrarily. The arrest, detention or imprisonment of a child shall be in conformity with the law and shall be used only as a measure of last resort and for the shortest appropriate period of time;

(c) Every child deprived of liberty shall be treated with humanity and respect for the inherent dignity of the human person, and in a manner which takes into account the needs of persons of his or her age. In particular, every child deprived of liberty [...] shall have the right to maintain contact with his or her family through correspondence and visits [...]

(d) Every child deprived of his or her liberty shall have the right to prompt access to legal and other appropriate assistance [...]” (United Nations, Treaty Series, vol. 1577)

Art 40

2 (b) “Every child alleged as or accused of having infringed the penal law has at least the following guarantees:

- (i) To be presumed innocent until proven guilty according to law;
- (iii) To have the matter determined without delay by a competent, independent and impartial authority or judicial body in a fair hearing [...]
- (iv) Not to be compelled to give testimony or to confess guilt [...]

3 (b) Whenever appropriate and desirable, measures for dealing with such children without resorting to judicial proceedings[...]

4. A variety of dispositions, [...] ; counselling; probation; [...] ; education and vocational training programmes and other alternatives to institutional care shall be available [...].” (United Nations, Treaty Series, vol. 1577)

A specific issue revolving around the application of the UNCRC to Palestinian minors revolves around the argument that could be made as to whether or not Israel is bound as the occupying power to translate those rights to the population it is occupying in the West Bank. (Sedley et al. 2012) Article 2(1) of the UNCRC clearly states that “States Parties shall respect and ensure the rights set forth in the present Convention to each child within their jurisdiction without discrimination of any kind” (United Nations, Treaty Series, vol. 1577). Additionally, the State of Israel ratified entirely the UNCRC without reservations on its territorial application. (Sedley et al. 2012)

In an *Advisory Opinion on the Legal Consequences of Construction of a Wall in the Occupied Palestinian* published in 2004, the International Court of Justice (ICJ) addressed this matter directly, as the State of Israel was refuting its obligations to apply human rights treaties as well as the UNCRC beyond its physical borders. (International Court of Justice 2004) It concluded the following (par. 113) : “As regards the Convention on the Rights of the Child of 20 November 1989, that instrument contains an Article 2 [...]. That Convention is therefore applicable within the Occupied Palestinian Territory.” (International Court of Justice 2004)

This view didn’t seem to be reflected within the Israeli authorities with whom Commonwealth mandated lawyers met however, as the common approach was to declare that the UNCRC criteria were to be applied only within Israel’s actual borders. Based on their expertise, the mentioned lawyers argued against this position; “In our judgement it is factually and legally unreal to suggest that children who are arrested by the Israeli Defense Force, interrogated by either the Israeli police or the Israel Security Agency, held in Israeli prisons and judged by Israeli military courts, are not within the jurisdiction of the State of Israel.” (Sedley et al. 2012)

5 The West Bank's occupation and its consequences on Palestinian minors

5.1 The impact of spatial occupation: implication of settlements

DCI-P has observed over the years that the majority of arrests concerning Palestinian minors in the West Bank typically occur in proximity of Israeli settlements, or Israeli military bases, including as well access roads typically used to provide for these locations. A strong correlation was also made between the arrests and events related to demonstrations and protests against checkpoints, settlements, separation walls and military infrastructures, describing it as a “hyper-militarized environment”. (Defense for Children International - Palestine 2016) While both the Israeli military forces and the Israeli police are entitled to carry out the arrest of Palestinian minors in the West Bank, as of Military Order 1651, most of the arrests are actually executed by the IDF. (Defense for Children International - Palestine 2016)

In a testimony provided by a first sergeant from the Armored Corps unit in Nablus, it becomes clear that one of the goals of the patrols are to be noticed in the area and assert their presence in any given way. “A patrol [or two] raise hell inside the villages. A whole company may be sent in on foot in two lines like a military parade in the streets, provoking riots, provoking children.” Due to the nature of the testimony, more detailed information regarding the sergeant's identity was excluded from the final report available to the public. (Breaking The Silence 2022)

Another implication consequential to the presence of settlements is the repetitive presence of settlers and associated settler violence targeted at Palestinians, typically involving beatings, gunfire incidents, and destruction of goods. Between March 2008 and July 2010, 38 cases of settler violence directed against minors were reported to DCI-P, responsible for the direct injury of 42 minors and the death of 3 children, in addition to all the other indirect injuries or trauma. The presence of IDF during those attacks are usually irrelevant when it comes to the protection of the Palestinian minors, as the “soldiers often turn a blind eye”. (Defence for Children International - Palestine 2010)

This situation is illustrated in the testimony of a retired IDF soldier from Kfir Brigade recalling his experience in Hebron: “This Jewish kid walks along, an Arab kid passes by, boom, the Jew kicks the Arab kid in the face. If the Arab would hit him back I have to catch him and slap him on the face, see? The Jew is free to do whatever he likes.” (Breaking The Silence 2022) Since the 1997 ratification of The Protocol Concerning the Redeployment in Hebron, the West Bank city has been divided into two distinct areas, area H1 under the Palestinian Authority's security and civilian responsibility and area H2 under Israel's security responsibility. The H2 area includes the old city

center, housing approximately 34 000 Palestinians and 700 Israeli settlers. Due to the forced proximity and numerous military checkpoints, Btselem having accounted 21 permanently run points, Palestinian minors are prone to exposition. ("Hebron City Center" 2019)

The principle on which relies Israeli expansionism through the establishment of settlements in the West Bank is a breach of several international texts, the first one being the Fourth Geneva convention. Article 49(6) clearly states that the occupying power, in this case Israel cannot transfer its civilian population in the occupied territories, the West Bank: "The Occupying Power shall not deport or transfer parts of its own civilian population into the territory it occupies." (75 UNTS 287)

The International Court of Justice (ICJ) aligned itself in that direction, reiterating in an advisory opinion from 2004 that "The Court concludes that the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law." (International Court of Justice 2004) The ICJ's Rome Statute Article 8 also qualifies the establishment of settlements as a war crime, as it matches the definition stated in article 8² b) (viii): "The transfer, directly or indirectly, by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory;" (ISBN No. 92-9227-227-6)

5.2 Rule of Law: application of the Israeli military law

In a bulletin report published in 2015, UNICEF provided numbers as a result of a dialogue with the Israeli Military Prosecutor. As such, in 2013, the Israeli Defence Forces (IDF) had arrested 654 minors in the West Bank, which were all then directed to the Military Advocate General (MAG). Out of these 654 minors, a considerable share were indicted, 465 as a matter of fact, roughly representing 71% of the arrested children. Furthermore, out of these 465 indicted minors, 80 were presented the opportunity to be released on bail until trial. In the corresponding year, the MAG received 15 official complaints against the IDF of alleged abuse on Palestinian minors. (UNICEF 2015)

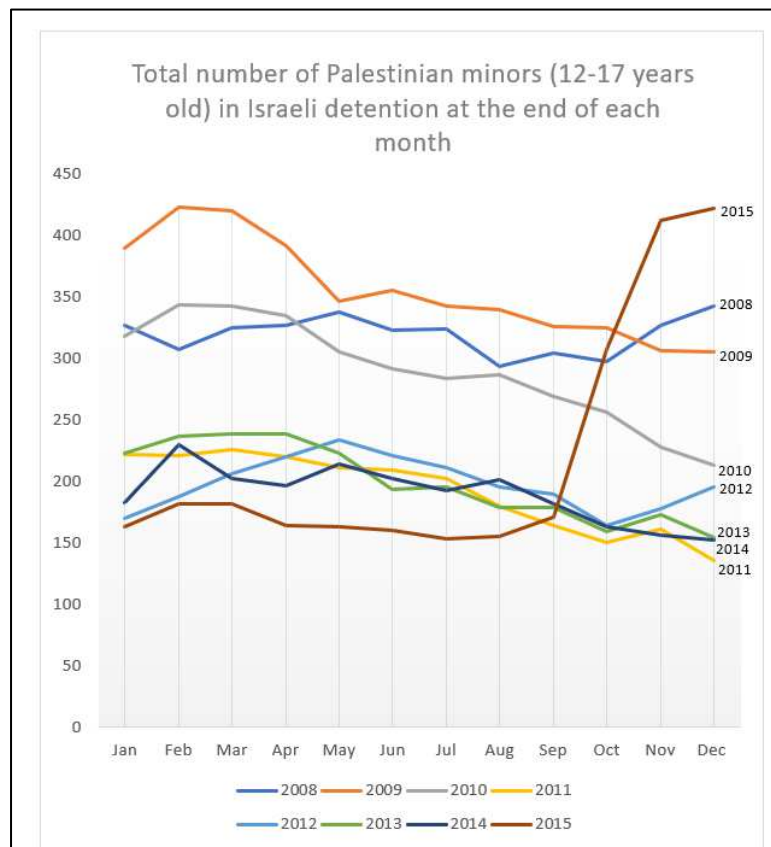
Defense for Children International – Palestine (DCI-P) estimates that 500-700 West Bank Palestinian minors are prosecuted in the military justice system every year. The figures remain an approximate to the best of the organization's knowledge, as the Israeli Prison Service (IPS) provides only monthly numbers of minors incarcerated. (Defense for Children International - Palestine 2012)

This information however does correlate with numbers collected from other sources. For instance, the Association for Civil Rights in Israel (ACRI) informed B'tselem that 1046 indictments had been filed against minors between 2014 and 2015 by the military prosecution. Out of these 1046 cases, 3% concerned minors aged 12 to 13, 25% concerned 14 and 15 years old, and 72% targeted 16 and 17 years old. (B'Tselem 2018)

As such, during the period extending from January 2008 to January 2012, 265 was the average number of Palestinian minors held in Israeli detention, with a share of 34% represented by young minors aged 12 to 15. In another more recent report provided by DCI-P as well, the average number of Palestinian minor in Israeli detention at any given time between 2012 and 2015 was 204, among which 16% were young minors aged 12 to 15. It is worth noting that Israeli authorities temporarily ceased to detain very young minors (aged 12-13) in 2014 and most of 2015. (Defense for Children International - Palestine 2012, Defense for Children International - Palestine 2016)

It can also be observed that the number of monthly detained minors has been decreasing over the years: 319 Palestinian minors were detained in average per month in 2008, 355 in 2009, 289 in 2010, and 192 in 2011, 198 in 2012, 199 in 2013, 197 in 2014, and 220 in 2015. The following graph is a more detailed representation of these monthly values, based on the data provided by DCI-P in both reports. (Defense for Children International - Palestine 2012, Defense for Children International - Palestine 2016)

According to UNICEF, the Israeli detention system designated for Palestinian minors is characterised by the recurrence of ill-treatment, which appears to be “widespread, systematic, and institutionalized throughout the process”. (UNICEF 2015)



Graph built based on data collected by DCI-P (Defense for Children International - Palestine 2012, Defense for Children International - Palestine 2016)

5.2.1 Conditions of arrest

Several concerning aspects of the arrest of Palestinian minors by the IDF have been raised by civil society groups like DCI-P over the years, backed by other prominent international intergovernmental groups such as UNICEF. Among these would be the repeated use of night arrests, technicalities over the reason of arrest and location of detention, the excessive use of force as well as the practiced methods of restraint. (Defense for Children International - Palestine 2012, Defense for Children International - Palestine 2016, UNICEF 2015) In a report dated from 2012, DCI-P provided an analysis of these conditions based on the collection of 311 sworn testimonies from Palestinian minors arrested by the IDF in the West Bank. (Defense for Children International - Palestine 2012) Similarly, DCI-P published a subsequent report based on sworn testimonies of 429 Palestinian minors detained between 2012 and 2015. (Defense for Children International - Palestine 2016)

5.2.1.1 Night arrests

The first dominant feature of the arrest procedure would be the time at which it is conducted. In the previously mentioned analysis, 60% of the minors report having been arrested between midnight and 5am. These night arrests appear to be traumatic not only for the child in question, but also for the relatives witnessing the scene. In some cases, the minors reported being waken up by soldiers with weapons armed in their direction, smashed windows, and/or lights point in their direction. The family is then generally asked to gather while the officer checks the IDs and sometimes search the house. (Defense for Children International - Palestine 2012) It's of worth to mention that the share of arrests occurring at night have been decreasing over time. Between 2012 and 2015, the proportion of minors arrested at night had already diminished to 41,7%. DCI-P additionally noted that in 2015 alone, that share was even lowered to 38.2% among their collected testimonies. (Defense for Children International - Palestine 2016)

While there are no legal standards specifying the time at which the children should be arrested (Defense for Children International - Palestine 2012), the UNCRC clearly states that "the best interests of the child shall be a primary consideration". (United Nations, Treaty Series, vol. 1577, p. 3)

The use of night arrests are justified by the Israeli authorities based on "security reasons and operational considerations", justifying the avoidance of day arrests that they would cause "wide-scale disturbances of the peace" when going through the West Bank villages to conduct them. (B'Tselem 2018) As a response to the increasing international criticism, the implementation of a limited pilot summons program was announced in 2014 by the Israel army Central Commander of the West Bank as a way to limit the use of night arrests. The program was interrupted for a few month in parallel with a military operation in the West Bank entitled *Operation Brother's Keeper*. In an email written to DCI-P in 2015, the Israel Defense Forces North American Media Desk explained that the program had resumed, and was "under the close supervision of officials in order to ensure that it is properly executed." While this pilot program appears as a step forward, critics are still being heard over two main issues: the delivering of these summons at night, as well as the continued observed ill treatment once the minor presents himself. In 2014, DCI-P catalogued 24 cases of Palestinian minors receiving a written or phone summon during night raids. (Defense for Children International - Palestine 2016)

5.2.1.2 Notification

Another problematic point when it comes to the arrest is the failure to provide the reason for the arrest and information about the detention location. (Defense for

Children International - Palestine 2012) While some provisions on notification of the arrested minor exists in the Israeli law, these factors apply to the Israeli Police, not the IDF. Yet, the majority of arrests are conducted by the Israeli military who is then in charge of transferring the arrested minor to the Israeli police, therefore leaving typically a few hours unframed gap between arrest and custody. (Defense for Children International - Palestine 2016)

A testimony from an IDF soldier of the reserves unit highlights the failure to notify the minor's parents when recalling an incident in 2009 in Jenin. The reserve soldier was in charge of notifying the parents that the minor, "really just a kid", had been arrested for rock throwing 2 to 3 days prior. When he reached the family, in the night, "they didn't even know that he had been arrested. They had no idea where he had been for three days." (Breaking The Silence 2022)

DCI-P highlighted the fact that in a small number of cases, the arresting authorities have the required paperwork for the arrest notice, but that that paperwork written in Hebrew failed to be written in a language understood by the concerned people. A lot of cases also report of parents not being notified of the location and duration during which the child will be detained for interrogation. (Defense for Children International - Palestine 2012) Additionally, when the minor is under investigation but not officially under arrest, the police has the right to suspend notification for up to 8 hours in case the minor is suspected of a security offense based on Military Order 1651. Finally, while notification of the parents is legally required, it's worth noting that their presence isn't, regardless of how young the interrogated minor is. (Defense for Children International - Palestine 2016)

These practices are in breach with the ICCPR Article 9 as well as the Beijing Rules Article 10, as both texts insist on having immediate knowledge of the reason of arrests. (A/RES/40/33, United Nations, Treaty Series, vol. 999, p. 171) DCI-P furthermore highlighted in 2012 the fact that this information should be shared in a written form, and in the spoken language of the concerned individuals, namely Arabic. (Defense for Children International - Palestine 2012) According to UNICEF, such form was introduced by the authorities in 2013, containing information on the reason and location of the arrest written in both Hebrew and Arabic. (UNICEF 2015) DCI-P however measured that between 2012 and 2015, 88.1% of the arrested minors had no knowledge of the reasons behind it at the time of the arrest, suggesting a lack in systematic implementation of the form. (Defense for Children International - Palestine 2016)

5.2.1.3 Use of restraints and physical violence

During the act of arresting, the use of restraints has been monitored as well. Out of the 311 testimonies between 2008 and 2012, 95% of the children declared having

been restrained by hand ties, most commonly by a single plastic tie in the back. (Defense for Children International - Palestine 2012) The figures for the cases between 2012 and 2015 are also similar, as 97.7% of the minors were restrained and 88.3% blindfolded. (Defense for Children International - Palestine 2016) Additionally, the restraints are often placed for a long time period and secured tightly, triggering pain. In some cases, the pain has been reported as extreme, and/ or causing also loss of blood flow and the turning blue of the limbs. A sworn testimony from the arrest of a minor in September 2011 recounts him having his hands tightly tied in the back for 19h, while another case in January 2011 describes restraints tightened to the point that their removal during interrogation cause the peeling of flesh. (Defense for Children International - Palestine 2012)

An IDF soldier's testimony from the Kfir Brigade accounts in that sense as well, when describing the use of restraints and blindfolds on Palestinians that were kept 10h in the sun of a requisitioned school for interrogation purposes: "There are soldiers who know what the point of the handcuff is, and then there are others, who think that it is meant as a device to stop blood flow from the wrist to the fingertips." After 7 hours, "not everyone had blue hands, but many people already turned numb." (Breaking The Silence 2022)

At the request of several civil society groups as well and after the start of a legal action by the Public Committee Against Torture in Israel (PCATI) in regards to this particular problematic, new instructions regarding the use of restraints were issued by Israeli authorities. It required for the minors to be tied with three plastic ties (one around each wrist, and one attaching to both restraints), and preconized the hands to be tied in front instead of in the back. This last element though is subject to security assessment of the situation. Sufficient blood flow should also be guaranteed by having the space for at least one finger between the tie and the wrist. However, from the cases document by DCI-P from April 2010 to January 2012, the compliance rate regarding those instructions appeared to be less than 2%. (Defense for Children International - Palestine 2012)

The excessive use of force during arrest appears to be the last measured aspect measured by DCI-P prior to interrogation. Out of the 311 cases, 30% Palestinian minors reported physical violence, typically involving pushing, slapping and/ or kicking, occurring in some cases after the child had been restrained and blindfolded. The UN Committee against Torture has stated that the excessive use of force by legal authorities can account to torture and/or ill treatment, pending on the inferiority among other factors of the concerned individual. (Defense for Children International - Palestine 2012) In case of compliance with the definition of torture, such acts would go against the ICCPR Articles 7 and 10 (United Nations, Treaty Series, vol. 999, p. 171), as well as the UN Convention Against Torture Article 16 (United Nations, Treaty Series, vol. 1465, p. 85).

Despite the problem being known, the situation hasn't improved, and has as a matter of fact worsened over the following years. Among the sworn testimonies collected between 2012 and 2015, 66.7% of the minors declared having endured physical violence during arrest. (Defense for Children International - Palestine 2016)

Physical and verbal abuse, as well as the use of degrading treatments are also present while the minor is being transferred from the location of arrest to the interrogation center, included some stops typically in military bases or small settlements until daybreak. It's not unusual for the process to take several hours. (Defense for Children International - Palestine 2012)

5.2.1.4 Transfer

Arrested minors were placed on the floor of the military car in 32% of the cases measured by DCI-P between 2008 and 2012, (Defense for Children International - Palestine 2012) and in 45.9% of the cases between 2012 and 2015. (Defense for Children International - Palestine 2016) while being restrained and blindfolded the majority of the time and thus occasioning additional injuries. Specifically during the transfer, 38% of the interviewed minors reported having experienced physical violence from the IDF (typically slapping or kicking) while being restrained, and 23% reported verbal abuse (typically directed to the minor's sister or mother) or humiliation. (Defense for Children International - Palestine 2012) The widespread occasion of violence during transfer appears to have increased over the years, as DCI-P documented cases of physical violence during transfer in 58.3% of the collected testimonies between 2012 and 2015, as well as 55% having also experienced verbal violence, humiliation or intimidation. (Defense for Children International - Palestine 2016) One of the actions building up on that feeling of humiliation and embarrassment is the strip searching, which was reported to have occurred in 33% of the cases between 2008 and 2012. (Defense for Children International - Palestine 2012)

During or after the transfer, the detained minor is rarely taken to the police station directly, and will often wait for a couple of hours or until daybreak in military bases, often located in or close to Israeli settlement, and without having knowledge of their final destination. (Defense for Children International - Palestine 2016) At that occasion they go through a medical checkup led by a military doctor or paramedic. It consists mostly of medical questions as only few minors mention the occurrence of an actual physical checkup. It is also very frequent for the arrested minors to have to wait a long time outside, despite harsh natural elements like heat or cold, without shelter, water or food. Additionally, some testimonies showed the absence of medical reporting of injuries sustained during the arrest. (Defense for Children International - Palestine 2012)

A testimony from an IDF soldier of Nahal Brigade highlights this recurring problematic during the case of a minor arrested and complaining of severe testicular pain. Based on the medical protocol in place, that minor should have been brought to the hospital. Instead the soldier's superior instructed him to give aspirin. When checking the files regarding the minor's capacity to withstand custody, he "realized he was supposed to undergo hernia surgery before his arrest. [...] Maybe the examination was not thorough, but this kid could not stand arrest. Then I realized that a doctor does not always really examine the detainees." (Breaking The Silence 2022)

Another report, *Doctoring the Evidence, Abandoning the Victim* was published by PCATI and Physicians for Human Rights Israel (PHR) in 2011, supporting allegations of lack in medical reporting. In addition to highlighting the complicity of some medical staff with the authorities, at the detriment of the detainee, on different levels, it also emphasizes on the detrimental consequences it has on the justice system's accountability system. As such, the report states in the concluding remarks that "not only do medical professionals fail to serve as effective recourse for victim's complaints of injuries inflicted upon them by their interrogators or other authorities; their conduct furthermore precludes the victim from presenting evidence which can aid in pursuing justice through various legal and administrative proceedings." (The Public Committee Against Torture in Israel and Physicians for Human Rights - Israel 2011)

5.2.2 Interrogation and detention

Out of the 311 testimonies collected by DCI-P from 2008 to 2012, not a single Palestinian minor reported having been interrogated in the presence of a lawyer, and 99.4% of them were also interrogated without the presence of a parent. (Defense for Children International - Palestine 2012) Similarly from 2012 to 2015, 97% of the interrogated minors didn't have legal counsel nor a parent present. (Defense for Children International - Palestine 2016) The concept of scrutiny provided by the presence of a third party is therefore absent, despite the fact that it would be a relevant tool against coercive methods during questioning. (Defense for Children International - Palestine 2012) It has been furthermore observed that most of the minors interrogated were not acquainted with their rights, in particular with the right to remain silent. (Defense for Children International - Palestine 2016)

The presence of an attorney during the interrogation process is essential. According to Military Order 1676 however, the detained minors can only consult a lawyer before being interrogated, as its presence is not allowed during the process. Additionally, through Military Order 1651, the right of a minor to a legal counsel can be revoked for up to 90 days on basis of security. (Defense for Children International - Palestine 2016) This pattern comes in opposition with the dictates of the CRC, in

particular of article 37 which insists on the “right to prompt access to legal and other appropriate assistance”. (United Nations, Treaty Series, vol. 1577, p. 3)

The appeal of obtaining a confession during interrogation is extremely high; in a report published 2018, B'tselem describes the “bar [set by the judges] for prima facie evidence [being effectively] so low that any confession or incriminating statement presented by the prosecution, even if dubious and rife with contradictions, is enough to meet the threshold”. (B'Tselem 2018) Prima facie evidence, regarding “a case in which pre-trial evidence was reviewed by a judge and determined to be sufficient to warrant the trial” (Kenton 2021), is one of the three pending requirements for a trial to end in the Israeli military system, the other two being having grounds for incarceration and the lack of incarceration alternatives. The importance placed on obtaining a confession during the minor’s interrogation is furthermore highlighted by former military judge Col. Ilan Kantz words: “There’s an approach to interrogation that says: First let’s get a confession. That’s the best situation. There’s no evidence to assess. Once you have a confession, the case is closed. You need one supporting detail and that’s that.” (B'Tselem 2018)

The use of restraints is widespread during the interrogation of Palestinian minors; according to DCI-P, 57% of the sworn testimonies between 2008 and 2012 reported being secured by restraints during interrogation, frequently highlighting the pain caused by it during the lengthy questioning. (Defense for Children International - Palestine 2012) The rate of interrogated minors while being restrained did decrease rather significantly however between 2012 and 2015, as the overall proportion was of 36.4%. (Defense for Children International - Palestine 2016) The minors are often brought into the room still blindfolded as well, and experience physical violence from the interrogators in 37% of the cases, generally as “pushing, slapping and kicking”. A few cases alert of more grave forms of physical violence, typically punching or slamming the minor’s head against the wall, and in some extreme cases, the use of electric shocks. The use of electric devices several times was reported in three cases connected to a police interrogator in Ari’el settlement. (Defense for Children International - Palestine 2012)

In addition to physical violence, the use of threats was reported in 52% of the minors questioned between 2008 and 2012. Threats were general observed to be either general or targeted at family members. When these threats were directed to the minor himself, the risk included physical violence, sexual assault, electric shocks, extended imprisonment and solitary confinement. Additionally, 31% of the minors reported verbal abuse during questioning. (Defense for Children International - Palestine 2012) It seems that the use of threats would have decreased over the years, as DCI-P documented complaints during interrogation in 22.4% of the minors detained between 2012 and 2015. Verbal abuse seems however to be present on similar levels, reaching 28.7% over that period of time. (Defense for Children International - Palestine 2016)

Increasingly so, patterns of double questioning have become apparent, as well as the use of informants and the bid to recruit the minor as an informant. Double questioning usually involves one of the inquiries to be directed in an unofficial way. (Defense for Children International - Palestine 2016) While the information retained from the preliminary unofficial interrogation is normally inadmissible, it is often used in the following questioning to incriminate the minor. (B'Tselem 2011)

Placement in solitary confinement was reported in 12% of the 311 testimonies collected by DCI-P between 2008 and 2012, with a duration average of 11 days. (Defense for Children International - Palestine 2012) The rate is similar for the cases documented between 2012 and 2015, reaching 15% with an averaged isolation period of 13 days. It also appears that the minors are placed in isolation not as a punishment but rather for interrogatory purposes by the Israel Security Agency (ISA), aiming to get a confession. Out of the 66 isolated minors in that report, 90.9% ended up confessing as a result of the solitary confinement. (Defense for Children International - Palestine 2016) Minors are usually placed in solitary confinement as a form of coercion to obtain a statement, and is observed more dominantly in the interrogation centers Al Jalame, Petah Tikva and Al Mascobiyya, located inside Israel. Being placed in solitary confinement has noticeable psychological impacts on the children, ranging from social isolation to psychotic episodes. (Defense for Children International - Palestine 2012)

In 2012, an open letter was sent to Israeli Prime Minister Netanyahu to express concerns over the continued use of solitary confinement on Palestinian minors in Al Jalame and Petah Tikva. It was known as *Al Jalame – 100 professionals speak out against the use of solitary confinement on children*, and became notorious by the number of professionals expressing their concern through their signature of the letter, including educators, physicians, academics and artists. (Defence for Children International - Palestine Section 2012) *The Guardian* also published an article as well as an audiovisual report known as Cell 36, interviewing two minors placed in solitary confinement in the known cell number 36 of Al Jalame detention center. Gerrard Horton, speaker for DCI in Ramallah (West Bank), describes the system of solitary designed as to “break the spirit of the child [...] After a week or so of the treatment, they decide to confess simply to get out of this cell.” (Sherwood, Heywood and Khalili 2012)

In the *Interim Report of the Special Rapporteur on Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (a/68/295)* published in 2013, Special Rapporteur Juan E. Mendez reiterated the content of the United Nations Rules for the Protection of Juveniles Deprived of Their Liberty. (Special Rapporteur on Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment 2013) He particularly appealed to Rule 67 of the set of rules in which “All disciplinary measures

constituting cruel, inhuman or degrading treatment shall be strictly prohibited, including [...] closed or solitary confinement or any other punishment that may compromise the physical or mental health of the juvenile concerned.” (A/RES/45/113) Special Rapporteur Juan E. Mendez further stated regarding solitary confinement that it “can amount to torture or cruel, inhuman or degrading treatment or punishment when used as a punishment [...] for juveniles.” (Defense for Children International - Palestine 2012) or when “used intentionally during pretrial detention as a technique for the purpose of obtaining information or a confession”. (Special Rapporteur on Torture and Other Cruel, Inhuman or Degrading Treatment of Punishment 2013) According to Special Rapporteur Juan E. Mendez, the use of solitary confinement on minors with the purpose to solicitate a confession is a violation of the International Covenant on Civil and Political Rights Article 7 and the UN Convention against Torture Article 16.

DCI-P reports that among the testimonies collected between 2008 and 2012, 58% of the minors confessed following a coercive interrogation. Other problematics appear around the signature of confessions; numerous minors deplore being forced to sign a document without having time to read through it. About 29% of the questioned minors also stated having had to read or sign a document written in Hebrew, then used on trial. (Defense for Children International - Palestine 2012) This last figure has increased between 2012 and 2015, occurring in 33.6% of the cases. (Defense for Children International - Palestine 2016)

5.2.3 Trial and plea deals

The collected testimonies by DCI-P between 2008 and 2012 highlights two dominant features of the military juvenile court procedures; namely the incredibly high confession rate, as well as the extremely low rate of release on bail prior to trial. (Defense for Children International - Palestine 2012) These two factors combined leads to an extremely high conviction rate of Palestinian minors before the Israeli military courts, reaching 99.74% in 2010 for instance. This rate was shared directly by the military courts in a report for Haaretz news. (Levinson 2011)

As such, 87% of the children remained in detention until the end of the proceedings, and 90% pleaded guilty. The high rate of pleading is explained by extremely long legal proceedings; it therefore reduces the total incarceration time of the minor if he pleads guilty, avoiding that way a long trial period and a lengthened sentencing which would expose him to additional hardships. (Defense for Children International - Palestine 2012) Based on Military Order 1651, the legal proceedings against the minor must be completed within a year after being charged of an offense by an Israeli military prosecutor. However the military court of appeals can also lengthen that period of time per block of 3 months. An additional duration factor to take into consideration is that the official offense charge occurs within 56 days following the

arrest. Between 2012 and 2015, 99.3% of the minors taken into custody pleaded guilty. (Defense for Children International - Palestine 2016)

DCI-P lawyers have been frequently requesting bail for the minors they represent while awaiting for trial, yet have been refused as such in an overwhelming majority of the case, illustrating the concept of “widespread and systematic use of pretrial custodial detention”. Out of all the cases finalized by these lawyers between 2012 and 2015, only 13.5% of the minors were released on bail. It was furthermore observed that it was particularly allocated to minors aged under 14 years old, with a fee ranging between 1000 and 5000 NIS (US\$260 to US\$1300). (Defense for Children International - Palestine 2016)

The conditions in which Palestinian minors are detained prior to trial, combined to the confession pattern and the trial principles violates several international texts. The Rome Statute as such guarantees the right to a fair trial, based on article 8². (ISBN No. 92-9227-227-6) The Beijing Rules Article 7.1 on another hand provides the “right to counsel” as well as the “right to the presence of a parent or guardian”, with article 13.1 adding that pretrial detention “shall be used only as a measure of last resort and for the shortest possible time”. (A/RES/40/33) This last factor is also stipulated in the UNCRC Article 37. (United Nations, Treaty Series, vol. 1577, p. 3) Article 14 of the ICCPR on the other hand insists on a “competent, independent and impartial tribunal”, as well as “adequate time and facilities for the preparation of [the minor’s] defense” while being “tried without undue delay”. It also relevantly insists on the minor’s right “not to be compelled to testify against himself or to confess to guilt.” (United Nations, Treaty Series, vol. 999, p. 171) The UNCRC reiterates the protection against “torture or other cruel, inhuman or degrading treatment” in Article 37, insisting also of the “right to maintain contact with his or her family” and the “right to prompt access to legal and other appropriate assistance”. According to Article 40, the minor should also “be presumed innocent until proven guilty” and be judged by “a competent, independent and impartial authority”. (United Nations, Treaty Series, vol. 1577, p. 3)

5.2.4 Imprisonment

Once convicted, Palestinian minors are transferred from the interrogation detention facilities to penitentiaries run by the Israeli Prison Services (IPS). (Defense for Children International - Palestine 2012) The conviction includes either custodial sentences, suspended sentences, or fines. Suspended sentences are the most common forms of conviction, concerning 99.3% of the minors between 2012 and 2015. The imposition of fines is also very common, as they were imposed in 88.5% of the cases during the same period of time, averaging 1550 NIS (US\$400). In case the parents were unable to pay the fine, the minor would remain longer in prison. (Defense for Children International - Palestine 2016) The main two prisons in which Palestinian

minors are incarcerated are in Ofer prison (West Bank) and Megiddo prison (Israel). The minors are divided from adult Palestinian prisoners in Megiddo prison. At the time of DCI-P's report in 2012, Ofer prison hadn't completely separated minors from adults. (Defense for Children International - Palestine 2012)

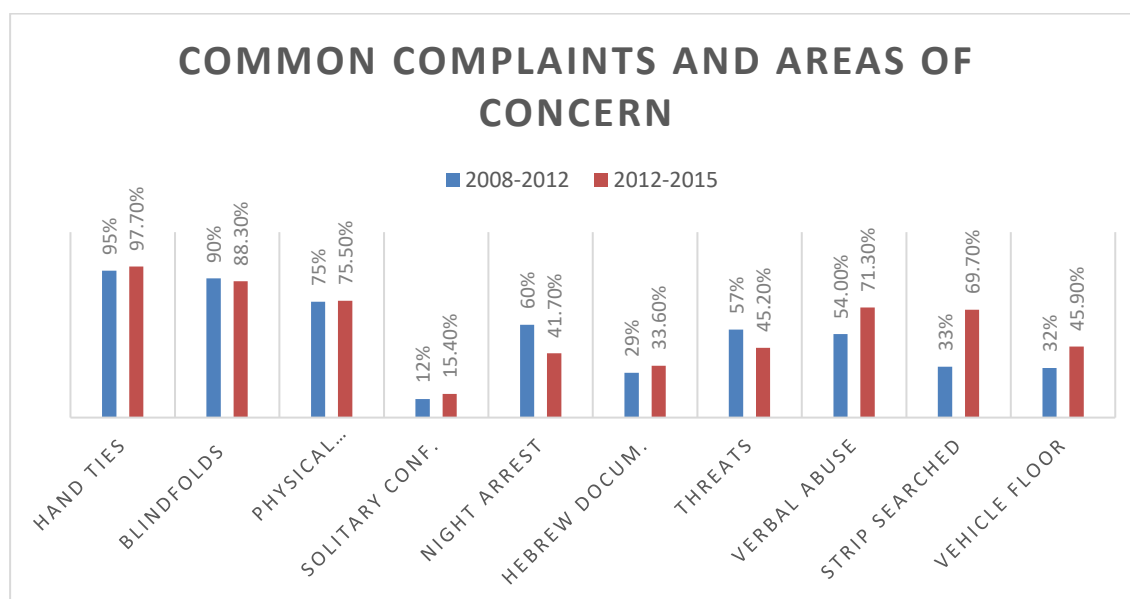
When imprisoned in Israeli jails, Palestinian minors are eligible to the same education as Israeli minors, who also happens to have a similar curriculum as the official Palestinian one. The Palestinian education curriculum includes the following subjects for students until the tenth grade (normally aged 16 years old): Arabic, English, Maths, Science, Technology, National Education, Civic education, History, Geography, Health and environment, Art, and Physical education. Past the tenth grade, students then chose between a scientific oriented program, or an artistic one. The final high school exam is called the Tawjehe exam. (Defense for Children International - Palestine 2012) Based on a ruling in 1997 in the case of Mohammad Frehat and ors v Israeli Prison Service, it however became apparent that the right to education is "subject to the security situation", and was consequently interpreted in such a way by the Israeli authorities that Palestinian minors cannot be taught history, geography and sciences while being in detention. ("Civilian Legal System" 2022) Detainees are consequently taught essentially Arabic and Math, and Hebrew in some cases like in Ofer prison. This restriction of classes is not only detrimental for the minor's education, but furthermore also impacts its capacity to reintegrate into society and school in particular after being released. (Defense for Children International - Palestine 2016) It effectively violates the UN Rules for the Protection of Juveniles Deprived of their Liberty Paragraph 38 which provides for "the right to education suite to his or her needs and abilities and designed to prepare him or her for return to society" as well as Paragraph 42 providing "the right to receive vocational training". (A/RES/45/113) ICESCR Article 13 also safeguards the right to education. (United Nations, Treaty Series, vol. 993, p. 3)

Palestinian minors detained in Israeli prisons also suffer from familial isolation. As a first point, minors are not permitted to have phone calls with their relatives. Physical visits are also rendered difficult as a considerable amount of detained minors are jailed in prisons located on Israeli grounds, like the Megiddo prison, which makes it necessary for family members to obtain permits to be allowed to pass the borders. The process of permit obtention being usually rather young, minors consequently receive few visitors. Additionally, the IPS prison rules allows one family visit of 45min every 2 weeks per minor. (Defense for Children International - Palestine 2012) This is a clear violation of the UN Rules for the Protection of Juveniles Deprived of their Liberty Paragraph 59 safeguarding the right to "adequate communication with the outside world, [including] their families, friends and other persons". (A/RES/45/113)

The transfer of detained Palestinian minors from the West Bank to Israel is a breach in article 76 of the Fourth Geneva Convention. Article 76 clearly states that "Protected persons accused of offences shall be detained in the occupied country, and if convicted they shall serve their sentences therein.", effectively forbidding the transfer of the accused minors out of their occupied land. (75 UNTS 287) It is reinforced by the Rome Statute Article 8². (ISBN No. 92-9227-227-6) Several cases were brought to the Israeli court, either specifically addressing the issue of prisoner transfer out of the occupied territory, or questioning the application of the Fourth Geneva Convention. The rulings all came out as opposed to these statements, and was justified by Israel's dualist legal system, in which international treaties must be integrated in domestic legislation in order to be applied. This therefore supports the continuous transfer of West Bank prisoners to prisons within Israel. ("Civilian Legal System" 2022)

5.2.5 Overall

The Committee on Social Affairs, Health and Sustainable Development of the Council Europe is also very critical of the whole process leading to the imprisonment of Palestinian minors. In a document declassified in 2017, rapporteur Ms Liliane Pasquier firstly highlights the problematic of the absence of lawyers and parents during interrogation. She then reiterates the fact that night arrests concern 25% of the Palestinian minors before making the following statement: "one does not need to believe the assessments of UNICEF and NGOs that ill-treatment is "widespread, systematic and institutionalised throughout the process, from the moment of arrest until the child's prosecution and eventual conviction and sentencing" to understand that the chances of getting a truthful confession from a terrified, overtired child separated from its parents (with no lawyer in the interrogation room) are slim." She furthermore states that these practices are "clearly not in the best interests of the child, but also not in the best interests of the Israeli authorities, who seek to find the culprits of crimes, not to terrify and wrongly accuse and convict innocent children and their families." (Rapporteur Ms Liliane Maury Pasquier 2017)



2008-2012 Data: (Defense for Children International - Palestine 2012)

2012-2015 Data: (Defense for Children International - Palestine 2016)

Nader Abu Amsha, director of Beit Sahour branch in the YMCA rehabilitation program in East Jerusalem, was interviewed in 2012 and also offers an overview for the range of problematics surrounding the treatment of Palestinian minors in the military legal system: (Defense for Children International - Palestine 2012)

“We have noticed that one of the most traumatizing experiences for the children is being arrested in the middle of the night in big raids, finding the soldiers in their rooms pointing their weapons at them, the shouting, and the breaking of things in many cases. This makes the detention very traumatic from the first minute. Also, the handcuffing, the blindfolding, being transferred in the floor of the military jeeps, being beaten, threatened and humiliated during interrogation. Being alone during all this process is a terrifying experience for the children. The child feels that the whole Israeli military system is against him, and he has no one to protect or accompany him. Then, being imprisoned for months far from the family, with people he doesn’t know, sometimes even with adults, not being able to talk about his feelings, and having to deal with the conflict between the different political affiliations of other prisoners, it’s all a very difficult experience for the child.”

5.3 The impact of Israeli military interactions on Palestinian minors

Psychological trauma is one of the consequences of the Palestinian minor’s interaction with the Israeli military judicial system, enhanced by the fact that this trauma

often remains untreated. Bed-wetting, sleeping difficulties and limiting its movements are common signs which were documented by DCI-P. The last sign is particularly relevant in the case of suspended sentences as the minors really apprehend any contact with Israeli authorities, to the point of refusing to leave the house or the village. (Defense for Children International - Palestine 2016)

A medical study was conducted on Palestinian minors from Nablus (West Bank) and Gaza, particularly addressing mental health. The doctors conducting the study highlighted the environment in which those minors evolve as a dominant causal factor, naming "repeated traumatic experiences" causing reactive psychological syndromes both severe and chronic. Among these symptoms are post-traumatic stress disorder (PTSD), anxiety and behavioral issues. Consequently, between 2005 and 2008, 596 Palestinian from Nablus were included in the Medecin Sans Frontieres (MSF) psychological care program. While this program is opened to patients regardless of their age, the median age for Nabulsi patients was 18 years old. These findings were not further separated between Gazan and Nabulsi minors (the following data is a combination of both). Nevertheless, it highlighted PTSD as the dominant symptom among patients younger than 15 years old. Out of the 619 patients younger than 15 years old, 25.8% suffered from PTSD, 18.3% from anxiety disorders, 6.5% from acute stress disorder, and 3.4% from depression. (Espié et al. 2009)

Another long lasting consequence of detention in the Israeli military system is the toll it has on the minor's education. In the testimonies collected between 2012 and 2015, 51.2% of the minors had received custodial sentencing for a duration comprised between 3 and 12 months. In the Palestinian educative system, imprisonment excuses the minor to miss 30% of the year's school days. In the case where the minor were to miss more, he would have to retake the year with younger classmates, which is the cause for a high drop out rate. In other cases, the amount of knowledge miss due to the basic educative curriculum in jail is too great to catch up. (Defense for Children International - Palestine 2016)

This whole situation is furthermore heightened by the lack of accountability of the authorities when faced with accusations of ill treatment. Between 2012 and 2015, DCI-P lawyers deposed 35 official complaints for ill-treatment and torture, resulting however without a single indictments. (Defense for Children International - Palestine 2016) Yesh Din, an Israel based human rights group correlates these statistics with data of their own; in 2015, only 3% of all the closed cases for causing harm to Palestinians (not exclusively minors) resulted in indictments against the responsible IDF individuals, namely 4 files out of 168. Out of these 168 cases, 120 were closed without further action, and 7 generated disciplinary action. (Yesh Din 2017)

Violence caused by settlers' ideological motivation directed towards Palestinians in the West Bank is also typically perpetuated in full impunity. A data sheet on law enforcement published by Yesh Din measured that out of the 1293 files monitored between 2005 and 2019, only 100 files resulted in an indictment. Another set of 8 files were "lost" by the Israeli police, which accounts for an overall indictment rate of 7.7% against settler violence (subdivided in this report as property offense, violent offense, confiscation of Palestinian land, and other). ("Data Sheet: Law Enforcement On Israeli Civilians In The West Bank" 2019)

The situation of impunity is even present when the complain comes from within the ranks of the army. In a testimony given an IDF lieutenant from Kfir Brigade in Bethlenem in 2006, the soldier described coming across a badly beaten young Palestinian, with "a black eye, his lip [...] torn, in really bad shape". While offering him water, another jeep from the patrol arrives, instigating a strong reaction of fright in the Palestinian, who then ran away back to his village while the soldier in that jeep was proudly boasting about the way he "handled him". The lieutenant reported the incident the following day to the deputy company direction, yet "nothing was done about it." (Breaking The Silence 2022)

This challenges the Fourth Geneva Convention, article 4, which aims to secure minimal protection of the inhabitants of the occupied territory. Based on the definition, the status of "protected person" applies Palestinians in the West Bank, not settlers, as they appear as the ones "in the hands of a Party to the conflict or Occupying Power of which they are not nationals". (75 UNTS 287)

"The guy was kidding and the kid was scared to death."

Testimony of a first sergeant, reserves unit in Nablus, describing the scene in which another reservist (the guy) was just asking, "not in any bad way", a passing Palestinian minor what he was studying. (Breaking The Silence 2022)

6 The Evolution of the Situation

Several organizations have been focusing the past years on establishing dialogue with the relevant authorities in order to improve the plight of Palestinian minors. A major one would be UNICEF which has been issuing specific recommendations directed to the Prosecutor for Judea and Samaria (West Bank), himself appointed by the Military Advocate General as the main interlocuter. More substantive dialogue was also initiated with other authorities regularly dealing with the minors, namely representatives of the Ministry of Justice, the Israeli Police, the Israel Prison Service, the Deputy Military Prosecutor for IDF Soldiers, as well as occasionally the Ministry of Foreign Affairs. In 2014, UNICEF Regional Director for the Middle East and North Africa (MENA) met with the Israeli Ministry of Foreign Affairs, reaffirming “the importance of dialogue as a tool for introducing further reforms in the best interest of children”, insisting on the necessity “to bridge the gap between policy and practice”. A series of recommendations were shared with the relevant Israeli authorities, and their progress tracked. (UNICEF 2015)

6.1 Creation of the juvenile court

The military juvenile court was established in 2009 through Military Order 1644, thereby establishing a court in which the judges are specially trained to deal with minors. Initially tasked with the trial of minors aged up to 16 years old, its jurisdiction extended to minors under 18 years old through the writing of Military Order 1676 in 2011. In addition to being tried by specifically trained judges, the juvenile military court offers other features not present previously: the separation of adult trials, the possibility to have a probation report, as well as the possibility for the parents to participate. (Sedley et al. 2012)

While the creation of a juvenile military court theoretically sounds entirely beneficial for the affected minors, numerous critics have been voiced towards regarding it. No Legal Frontier articulated the creation of the juvenile court as “[bringing] about only a marginal change in the legal proceedings against Palestinian minors” as there were “no effect at all on the interrogation and arrest procedures, which are the de facto critical stages that dictate the outcome of the whole legal process.” (No Legal Frontiers 2011) The IDF on the other hand views the establishment of a juvenile court essentially positively, as a way of “improving the protection of minors’ rights”. The MAG Corps stated in a similar position that “it is designed to reflect the legal precept [...], with considering for the principle of the minor’s best interest.” (B’Tselem 2018)

The concept of “generational segregation” has also arisen recently, the military juvenile court being only one of its component however as the concept extends further

to prison separation based on age. While in the past only minors under the age of 16 were separated from older Palestinian counterparts, it has become enshrined in both civil and military law to systematically separate minors under 18 from adults. Professor Viterbo portrays the situation as a “battle over the Palestinian child’s soul” through Israeli authorities’ intentions of proscribing “intergenerational knowledge transfer”. (Israeli Defence Forces 2013) A statement from military court of appeals judge Gordon over the incarceration of a Palestinian minor illustrates the point in which rehabilitation is preferred for the sole purpose of avoiding the spread of influence from older prisoners: “[The] appellant may indeed be distanced, for a while, from those adults who wished to capture his soul, and may even receive rehabilitative treatment that will help him oppose those adults”. (El-Nasirat v. Military Prosecutor 2003) While intergenerational contact between Palestinian minors and adults in Israeli prisons provided a first hand share of “political knowledge and consciousness”, older peers would also provide valuable support in the form of “educational, psychological, and material care”, also advocating for them to the prison authorities and mediating altercations, all the more important considering the restricted and limited contact minors are allowed with their families. Testimonies collected by DCI and B’tselem affirm these aspects of intergenerational support. (Viterbo 2018)

6.2 Amendments of Military orders

Among other major developments, UNICEF highlighted a series of changes in the Israeli military legislature especially noticeable from 2013. (UNICEF 2015)

Military Order 1676 was ratified in September 2011, and comes as an update to Military Order 1651 in regards particularly to the age of legal majority. It also provides the minor with the right to be informed of his entitlement to a consultation with a lawyer, yet fails to specify at what time this consultation should occur. It also acts upon notification of the parents when their child has been arrested. It’s important to note however that this military order relies on its previous version when it comes to sentencing; according to Military Order 1651 art. 168 C, minors up to 17 years old inclusively are exposed to a maximal sentence of 12 months in prison. This doesn’t apply however to minors accused of crimes which sentences normally account to 5 years or more; minors in those cases will be sentenced like an adult. The security offense of rock throwing, which is the most common offence, comes under this category, as the maximum penalty carried for it is 10 to 20 years of imprisonment. (Sedley et al. 2012) Additionally, as of preexisting Military Order 1651, the right of the minor to see a lawyer during the first 48h of the detention period is suspended in case “the circumstances [...] raise suspicion that he [...] endangers the security of the region.” (Defense for Children International - Palestine 2012)

Military Order 1711 was created in April 2013, effectively reducing the amount of time a minor can lawfully remain in detention before appearing in court. The time reduction is especially notable in the case of minors aged 12-13, effectively reduced from the previously standard 96h to 24h. It can be extended by 24h for present investigation justification by the Israeli Police. In the case of minors aged 14-15, that time decreased to 48h, which a possibility to extend as well by 48h for investigation purposes. In the case of minors aged 16-17, the time allowed for detention prior to court remains unchanged, namely 96h. (UNICEF 2015) While this is a step forward, critics highlight the fact that the “widespread ill-treatment” of Palestinian minors occurs within the first 48h of detention. “These reduced time periods will have no practical impact on ending systematic ill-treatment.”, stated Ayed Abu Eqtaish (director of the Accountability Program, DCI-Palestine). (“New Israeli Military Order Ineffectual In Safeguarding Child Detainees” 2013)

Military Order 1726 was issued in October 2013, effectively codifying the period of remand in which the minor can stay before being indicted, limiting it to 15 days in case of need for investigatory purposes. Past this deadline, the remand period can be renewed by periods of 10 days at a time by the Military Court, and then by the Military Court of Appeals if the overall duration surpasses 40 days. (UNICEF 2015) It comes as an amendment to Military Order 1651, and decreases the overall remand period to 130 days, instead of the previous 150 days. (“Military Orders” 2022)

In the same month, Military Order 1727 was also issued, and is rather seen as a consolidation of previous orders, effectively focusing on the creation of a juvenile military court, parental presence in court, separation of minors in jail, assignation by the court of the legal counsel, as well as an increase of the legal majority to 18 years old. (UNICEF 2015, “Military Orders” 2022)

Military Order 1745 was issued in September 2014, requiring the audio-visual recording of the interrogation process. It also indicated that the questioning would be held in a language understood by the child, namely Arabic opposed to Hebrew. (UNICEF 2015) While this order amended the previous Military Order 1651 (“Military Orders” 2022), it also included a clause stipulating that these provisions would not be effective for minors accused of conducting security offenses. (UNICEF 2015) It therefore does not apply to minors accused of rock throwing, which is the main cause of arrest.

In addition to the creation of a juvenile military court and amendments of Military Orders affecting minors, the Israeli forces have also communicated on a series of directives. (UNICEF 2015)

In 2013, the use of a bilingual Arabic/ Hebrew form was introduced for the purpose of informing the parents when their child has been arrested. The main information on it includes the reason of arrest and the location to which the child will be taken. In the same year, the IDF Legal Advisor for the West Bank also reminded all relevant

Israeli authorities (Brigades, Divisions, Police and Military Police) of protocols and practice safeguards which should be respected when dealing with minors. The insistence was placed on the blindfolding only in the case of a security threat, the use of three plastic ties for hand bounding, the immediate notification of the minor's parents in case of arrest, as well as the immediate transfer of the child to the authorities in charge. (UNICEF 2015)

Other developments over the same period of time would also include the formation of a pilot test, consisting in the replacement of night arrests by summons concerning the minors, when deemed possible. The Military Prosecutor also informed UNICEF of having reminded the IDF medical staff of their procedural obligations, including and especially in the case of alleged abuse by the authorities in the case of minors. (UNICEF 2015)

6.3 Criticism of the reforms

While these steps are an improvement in the situation experienced by Palestinian minors when facing the Israeli military legal system, several scholars have voiced the problematics of it. Prof. Hedi Viterbo, in his work *Problematising Law, Rights, and Childhood in Israel/ Palestine*, calls on these reforms for being a form of hyperlegality and tokenism, associating the establishment of a juvenile court as well the raise in the age of majority with the impression of having "[rectified] the spatial and temporal boundaries of childhood in line with international legal and human rights standards." (Viterbo 2021)

A first element described is the hyper legal character of these reforms, a concept introduced by scholar Nasser Hussain, and which relies on two factors for its identification: "the increased legal classification of people into subcategories" and "the use of special tribunals". When applied to the legal situation of Palestinian minors in Israeli military courts, the age distinction as well as the child-specific character of it fulfills both items. (Viterbo 2021) An English written military court unit paper illustrates this concept of hyperlegality in regards to the establishment of juvenile courts (Israeli Defence Forces 2013):

"Within the efforts to protect the rights of all defendants and particularly minors, in 2009 a juvenile military court was established for minors under the age of 16 [...]. [It] guarantees adequate and professional care for juveniles and recognizes their welfare and best interests as a factor in the proceedings. [It] provides for a separation between minor and adult detainees, as well as a wide range of additional protections. In 2011, an amendment [...] raised the age of majority from 16 to 18 years of age". (Israeli Defence Forces 2013)

Professor Viterbo further criticizes recent amendments for being merely “token reforms”, lacking any “meaningful impact” on the situation faced by Palestinian minors. His position is based on three elements, being essentially the symbolism of amendments prioritized over significant changes, the lack of coherence when it comes to the application of those amendments, and the broad use of general “exception” clauses. The change in age of majority illustrates the notion of symbolism for instance, provided that the military order reclassifies 16 and 17 years old as minors instead of adults, yet exposes them to the same provisions when it comes to rulings, sentencing and imprisonment. Exception clauses are also rather widespread, especially when it comes to minors suspected of having committed “security offenses”. Under these clauses, security offense minors are unable to benefit from amendments settling a shorter one year statutory limitation as well as the ones requiring the audio-visual recording of interrogations. (Israeli Defence Forces 2013)

7 Conclusion

The goal of this work was to firstly inquire which obligations towards Palestinian minors the state of Israel had contracted through ratification of international legally binding texts. A total of nine texts appeared to be relevant to the topic, namely the Fourth Geneva Convention, the Rome Statute, the Beijing Rules, the International Covenant on Civil and Political Rights, the UN Rules for the Protection of Juveniles Deprived of their Liberty, the International Covenant on Economic Social and Cultural Rights, the International Convention on the Elimination of all forms of Racial Discrimination, the UN Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment, and the UN Convention on the Rights of the Child. The overall combination of legal texts provided as such provisions for minors' rights essentially in the fields of education, imprisonment, legal procedures, well being, and torture.

A simultaneous analysis of the reality on the ground when it comes to the interaction of Palestinian minors with Israeli authorities has highlighted numerous cases in which rights previously granted by international law were not respected. Based on several hundreds of testimonies, a pattern of systematic violence appeared, characterized by physical and psychological abuse with a clear goal of obtaining confessional evidence. Such blunt disregard of the Palestinians' rights and wellbeing has drawn the engagement of the civil society, Palestinian, Israeli and international alike, even reaching judicial proceedings in the UN and International Court of Justice. Delegations of lawyers and non-governmental workers initiated meetings with representatives from Israeli authorities in order to address the situation, discussing routes of improvement and possible implementations.

While I welcome constructive dialogue between representatives from both parties in the optic of improving the general welfare of Palestinian minors, the recent amendments made to military legislation might leave one wondering if real progress has actually been made. Three problematics seem to be emerging; the numerous cases in which exemption clauses are added to the changes preventing minors accused of security offenses of benefiting from them, the failure to address the abuse prior to detention, as well as the gap between procedures and application of these procedures on the ground. An additional concern was formed on a personal level by the lack of support available to minors upon release from Israeli prisons, both on an educational and psychological level. The lack of easily accessible help in a society not prone to discussing such issues is an additional and considerable hurdle the Palestinian minor is brought to overcome. While I unfortunately remain rather sceptical at the idea of future legal and practical improved protection of Palestinian minors in the hands of Israeli authorities, I wish to trust in the power of grass root initiatives and societal change rather on the Palestinian side as a way of healing the trauma and guaranteeing future educational and professional opportunities.

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9 List of figures

Figure 1: Israeli Military Juvenile Detention System
(Defence for Children International - Palestine 2019)



Figure 2 : Oslo II Map outlining Areas A, B, and C
(Kersel, Morag. 2014)



Figure 3: Killed Palestinians (Martyrs) in the Second Intifada

("Killed Palestinians (Martyrs) In Al-Aqsa Uprising (Intifada), By Year 2000-2018" 2022)

Killed Palestinians (Martyrs) in Al-Aqsa Uprising (Intifada), by Year 2000- 2018	
Click Here To Download Excel File	
Year	Number
2000 *	333
2001	605
2002	1,192
2003	687
2004	895
2005	261
2006	700
2007	409
2008	934
2009	1,219
2010	107
2011	118
2012	306
2013	56
2014	2,240
2015	181
2016	126
2017	94
2018	312
Total	10,577
* The Data represent the period 29 September - 31 July 2000, and may change due to ongoing research. It reflects documented cases only.	

